

Hong Kong Housing Authority

STANDARD LIBRARY

OF

SPECIAL CONDITIONS OF CONTRACT

FOR

BUILDING WORKS

2013 EDITION

(Consolidated up to 1 January 2023)

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SCC1 DEFINITIONS AND INTERPRETATION

SCC1.1 Definitions (related to "Technical Proposals")

Rev. 1 approved on 01.12.2022

For the purpose of Clauses SCC4.1 and SCC4.2 of the Special Conditions of Contract:-

(1) Clause 1.1 of the General Conditions of Contract is amended by adding the following definitions:-

"Special Conditions of Tender" means the special conditions of tender of the Contract.

"Technical Proposals" means such part(s) of the Contractor's technical proposals enclosed in the Envelope _____ referred to and specified in Special Conditions of Tender Clause SCT_____ accepted by the Employer in the Letter of Acceptance.

(2) The following definitions in Clause 1.1 of the General Conditions of Contract are amended by substituting with the following:-

"Contract" means the Articles of Agreement, the Tender, the Letter of Acceptance (including the Technical Proposals), the Drawings, the General Conditions of Contract, the Special Conditions of Contract (if any), the Specification and the Bills of Quantities and/or schedule of rates.

"Letter of Acceptance" means the letter issued by or on behalf of the Employer for the acceptance of the Tender including such proposals and documents as may be attached to or expressly stated in the letter to form part of the Contract.

SCC1.2 Definitions (related to "Labour Relations Officer")

For the purpose of Clause SCC6.1 of the Special Conditions of Contract:-

Clause 1.1 of the General Conditions of Contract is amended by adding the following definition:-

"Labour Relations Officer" means any person or persons appointed from time to time by the Employer and notified in writing to the Contractor to monitor the payment of wages to workers and staff employed by the Contractor and his sub-contractors of any tiers including Specialist Sub-contractors and Nominated Sub-contractors and carry out such other duties in relation to wage payment monitoring all as specified in the Specification.

SCC1.3 Definitions (related to Contracts with all provisional quantities)

For the purpose of Clause SCC11.1 of the Special Conditions of Contract:-

The following definitions in Clause 1.1 of the General Conditions of Contract are amended by substituting with the following:-

"Contract Sum" means the total of the priced Bills of Quantities as stated in the Letter of Acceptance.

"Period of Final Measurement" means the period of final measurement as stated in the appendix to Form of Tender which shall commence on the date as referred to in Clause 11.1(6)(a).

SCC1.4 Definitions (related to "Old and Valuable Tree")

For the purposes of Clauses SCC22.1 and SCC22.2 of the Special Conditions of Contract:-

Clause 1.1 of the General Conditions of Contract is amended by adding the following definitions:-

"Old and Valuable Tree" means the "Old and Valuable Tree" as defined in the Specification.

"Aftercare to Old and Valuable Trees" means the "Aftercare to Old and Valuable Trees" as defined in the Specification.

SCC1.5 Definitions (related to "Excavation Permit")

For the purpose of Clause SCC22.3 of the Special Conditions of Contract:-

Clause 1.1 of the General Conditions of Contract is amended by adding the following definition:-

"Designated Authority" means the "Authority" referred to in the Land (Miscellaneous Provisions) Ordinance (Cap. 28).

"Economic Costs" means the "economic costs" referred to in Schedule 3 to the Land (Miscellaneous Provisions) Regulations (Cap. 28A).

"Excavation Permit" means any excavation permit issued by the Designated Authority in respect of the Works or Section or any part thereof under the Land (Miscellaneous Provisions) Ordinance (Cap. 28), including any extension and amendment of the excavation permit.

"Nominated Permittee" has the same meaning as the "nominated permittee" defined in the Land (Miscellaneous Provisions) Ordinance (Cap. 28).

"Permittee" has the same meaning as the "permittee" defined in the Land (Miscellaneous Provisions) Ordinance (Cap. 28).

"Street Maintained by the Highways Department" has the same meaning as the "street maintained by the Highways Department" defined in the Land (Miscellaneous Provisions) Ordinance (Cap. 28).

SCC1.6 Definitions (related to "Housing Construction Management Enterprise System")

For the purpose of Clause SCC22.4 of the Special Conditions of Contract:-

Clause 1.1 of the General Conditions of Contract is amended by adding the following definitions:-

"Electronic Communication in HOMES" means communication of information using HOMES such as but not limited to notice, instruction, order, direction or certificate of the Contract Manager, certificate, valuation, determination, ascertainment or measurement of the Surveyor, mail, correspondence, submission, approval and the like among users of HOMES for the purpose of the Contract.

"HOMES" means the "Housing Construction Management Enterprise System" as specified in the Contract for use with the communication of the Contract.

"Start Date" means the date as notified by the Contract Manager for the commencement of the implementation of HOMES for the Contract.

"End Date" means the date 60 days after the date of issue of the final payment certificate by the Surveyor in accordance with Clause 14.2.

SCC3 ASSIGNMENT AND SUB-CONTRACTING

SCC3.1 Sub-contracting

Rev. 2 approved on 01.12.2022

Clause 3.2 of the General Conditions of Contract is amended by adding the following:-

(9) (a) Where the Contractor is to sub-contract a part of the Works execution of which involves trades available in the trade contractors registration scheme administered by the Construction Industry Council as specified in the Contract, the Contractor shall ensure that, for the purposes of execution of such part of the Works and to the extent that execution of the same involves such trades, all sub-contractors, irrespective of their tiers to the Contractor, who are to be engaged to carry out that part of the Works:-

(i) have completed or shall comply with the registration requirements stipulated in Clause 3.2(9)(b) for their registration under the relevant trades available in such trade contractors registration scheme unless otherwise provided in this Clause 3.2; and

(ii) shall comply with the rules and requirements under such trade contractors registration scheme unless otherwise provided in the Contract.

The Contractor shall submit the latest updated particulars of the sub-contractors in the format as specified in the Contract.

(b) The sub-contractors proposed by the Contractor under Clause 3.2(9)(a) irrespective of their tiers to the Contractor shall complete their registration under the relevant trades available in such trade contractors registration scheme before the date for commencement of the sub-contract works.

Provided that the Contractor shall not engage a sub-contractor who is suspended or in the process of an appeal against his suspension from registration under such trade in the trade contractors registration scheme unless the suspension is lifted before the commencement of the sub-contract works under the relevant sub-contracts.

(c) The provisions of Clauses 3.2(9)(a) and 3.2(9)(b) shall not apply to the engagement of any Nominated Sub-contractor or sub-contractor selected by the Contractor from the relevant list given or referred to in the Specification but shall apply to the engagement of sub-contractors of such Nominated Sub-contractor or sub-contractor.

(d) In pursuance to Clause 3.2(5), the Contractor shall submit to the Contract Manager particulars, as specified in the Contract, of the sub-contractors irrespective of their tiers to the Contractor within 14 days from the date for commencement of the Works and shall notify the Contract Manager in writing of any changes of or to such particulars or sub-contractors or any new sub-contracting permitted under Clause 3.2(1) or 3.2(2) during the currency of the Works within the time as specified in the Specification.

SCC3.2 Sub-contract conditions

Rev. 1 approved on 22.11.2017

(1) Without prejudice to the generality of Clause 3.2 of the General Conditions of Contract, the Contractor shall ensure, but without limitation, that the following provisions of the Contract shall be similarly and appropriately included into each and every sub-contract of all tiers including Specialist Sub-contracts and Nominated Sub-contracts for the carrying out of the Works under the Contract and the Contractor shall be responsible for the observance of these provisions by the sub-contractors irrespective of tiers, including Specialist Sub-contractors and Nominated Sub-contractors employed in the carrying out of the Works:-

(a) Clauses 1.1, 3.2, 5.8, 5.30, 6.2 and 6.3 of the General Conditions of Contract.

(b) Clauses SCC3.1, SCC3.2 and SCC6.1 of the Special Conditions of Contract.

(c) Provisions in the Specification relating to sub-contracting, probity and code of ethics, payment of wages of site personnel, wage books, Contractor's management team and site access control of personnel.

(2) Upon request by the Contract Manager, the Contractor shall provide the original documents of the relevant sub-contracts for inspection by the Contract Manager.

(3) The Contractor shall take all necessary steps to ensure compliance with this Clause SCC3.2 of the Special Conditions of Contract and shall, if necessary, within a reasonable time enter into a supplemental agreement with any of his sub-contractors to ensure that the sub-contracts comply with the requirements in Clause SCC3.2(1) of the Special Conditions of Contract and to ensure that his sub-contractors shall do the same in any lower tier sub-contracts.

(4) Failure to comply with this Clause SCC3.2 of the Special Conditions of Contract may lead to the removal of the sub-contractor from the Site and/or the Works pursuant to Clause 3.2(3) of the General Conditions of Contract.

SCC4 CONTRACT DOCUMENTS

SCC4.1 Documents mutually explanatory

Clause 4.1 of the General Conditions of Contract is amended by substituting with the following:-

(1) The several documents forming the Contract shall be taken as mutually explanatory of one another and shall, subject to Clause 4.1(2) hereof, be construed according to the following order of precedence:-

(a) the Special Conditions of Contract, and

(b) the General Conditions of Contract, and

(c) other documents forming part of the Contract.

(2) In the event of conflict between the Technical Proposals (including any changes, amendments and modifications thereto or thereof) and any other terms or conditions or documents forming part of the Contract, the Technical Proposals (including any changes, amendments and modifications thereto or thereof) shall prevail only in the case where they impose higher requirements in terms of quality or quantity than those specified under or pursuant to the other terms or conditions or documents forming part of the Contract or impose requirements on the part of the Contractor more onerous than those specified under or pursuant to the other terms or conditions or documents forming part of the Contract and in all other cases the other terms or conditions or documents forming part of the Contract shall prevail.

(3) In case of ambiguities or discrepancies found in the documents forming the Contract (other than ambiguities or discrepancies within the Technical Proposals (including any changes, amendments and modifications thereto or thereof) which shall be dealt with in accordance with Clause 4.1(4)), the same shall be explained by the Contract Manager who shall issue to the Contractor instructions clarifying such ambiguities or discrepancies. Where the Contractor makes a request in writing to the Contract Manager for instructions under this Clause 4.1(3) the Contract Manager shall respond within 14 days of receipt of such request.

Provided that:-

(a) errors in quantities provided in the Bills of Quantities (other than provisional quantities) or work shown on the Drawings or described in the Specification but not measured in the Bills of Quantities shall be dealt with in accordance with Clause 11.1, and

(b) if compliance with such instructions shall, in the opinion of the Surveyor, involve the Contractor in any expense which by reason of any ambiguity or discrepancy the Contractor did not and had no reason to anticipate, the Surveyor shall determine such expense in the same manner as a sum to be added to the Contract Sum in respect of a Variation in accordance with Clause 11.3 and shall take this into account in the calculation of the Final Contract Sum, and

(c) if compliance with such instructions shall, in the opinion of the Surveyor, involve the Contractor in any saving, then the Surveyor shall determine such saving in the same manner as a sum to be deducted from the Contract Sum in respect of a Variation in accordance with Clause 11.3 and shall take this into account in the calculation of the Final Contract Sum.

(4) Where there is any ambiguity or discrepancy within the Technical Proposals (including any changes, amendments and modifications thereto or thereof), the Contractor shall inform the Contract Manager in writing of his proposed amendment to remove the ambiguity or discrepancy; and (subject always to compliance with statutory requirements) the Contract Manager may either issue instructions on such ambiguity or discrepancy or accept the Contractor's proposed amendment and the Contractor shall be obliged to comply with the instructions or the Contractor's proposed amendment accepted by the Contract Manager without additional cost and time to the Employer. For the avoidance of doubt, the Contractor shall be entitled to neither additional cost nor extension of time for compliance with such instructions or amendment. If in the opinion of the Surveyor compliance with such instructions or amendment shall involve the Contractor in any saving, then the Surveyor shall determine such saving in the same manner as a sum to be deducted from the Contract Sum in respect of a Variation in accordance with Clause 11.3 and shall take this into account in the calculation of the Final Contract Sum.

SCC4.2 Submission, modifications or amendments to Technical Proposals

Rev. 1 approved on 14.10.2014

Option A – **[This Option is for use in building contract adopting the two-envelope tendering system where the Contractor is <u>not</u> required to provide information of his proposed sub-contractor(s) and the experience of the sub-contractor(s) in the technical proposals at tender stage.]**

(1) The Contractor shall, subject to Clause 4.1 of the General Conditions of Contract (as amended by Clause SCC4.1 of the Special Conditions of Contract) and Clauses SCC4.2(2), SCC4.2(3), SCC4.2(7) and SCC4.2(8) of the Special Conditions of Contract, execute the Works in accordance with the Technical Proposals (including any changes, amendments, modifications thereto or thereof approved, accepted, ordered or instructed by the Contract Manager in accordance with the Contract).

(2) If it is legally or physically impossible for the Contractor to execute the Works in accordance with the Technical Proposals, the Contractor shall immediately inform the Contract Manager in writing and, subject to prior written approval of the Contract Manager, forthwith make all necessary modifications or amendments to the Technical Proposals so as to enable the Works to be executed and completed in accordance with the requirements of the Contract and shall execute the Works in accordance with the Technical Proposals as modified or amended to the satisfaction of the Contract Manager.

(3) If it is legally or physically impossible for the Contractor to execute the Works in accordance with the Technical Proposals modified or amended in accordance with Clause SCC4.2(2) of the Special Conditions of Contract, the Contractor shall further modify or amend the Technical Proposals in accordance with the same requirements and procedures and perform the same obligations as required in or under Clause SCC4.2(2) of the Special Conditions of Contract.

(4) The Contractor shall within 21 days when so requested by the Surveyor give detailed information on the estimated cost of execution of the Works in respect of or in connection with such modifications or amendments of or to the Technical Proposals referred to in Clause SCC4.2(2) or SCC4.2(3) of the Special Conditions of Contract (as the case may be).

(5) Any saving to the Contractor arising from such modifications or amendments of or to the Technical Proposals referred to in Clauses SCC4.2(2) and/or SCC4.2(3) of the Special Conditions of Contract shall be determined by the Surveyor in the same manner as a sum to be deducted from the Contract Sum in respect of a Variation in accordance with Clause 11.3 of the General Conditions of Contract and shall be taken into account in the calculation of the Final Contract Sum.

(6) The Contractor shall not be entitled to any additional payment or extension of time for the execution of the Works in accordance with such changes, modifications or amendments of or to the Technical Proposals referred to in Clauses SCC4.2(2) and/or SCC4.2(3) of the Special Conditions of Contract save and except that the foregoing shall not apply to any changes, modifications or amendments arising from the Contractor's compliance with a Variation.

(7) Any obligation of the Employer and/or Contract Manager specified or implied in the Technical Proposals and/or such changes, modifications or amendments of or to Technical Proposals referred to in Clauses SCC4.2(2) and/or SCC4.2(3) of the Special Conditions of Contract which is not an obligation of the Employer or, as the case may be, the Contract Manager under other documents forming part of the Contract shall have no effect and shall not be binding on the Employer or, as the case may be, the Contract Manager.

(8) Any right of the Contractor specified or implied in the Technical Proposals and/or such changes, modifications or amendments of or to Technical Proposals referred to in Clauses SCC4.2(2) and/or SCC4.2(3) of the Special Conditions of Contract which is not a right of the Contractor under other documents forming part of the Contract shall have no effect.

Option B – [**This Option is for use in building contract adopting the two-envelope tendering system where the Contractor is required to provide information of his proposed sub-contractor(s) and the experience of the sub-contractor(s) in the technical proposals at tender stage.]**

(1) The Contractor shall, subject to Clause 4.1 of the General Conditions of Contract (as amended by Clause SCC4.1 of the Special Conditions of Contract) and Clauses SCC4.2(2), SCC4.2(3), SCC4.2(4), SCC4.2(8) and SCC4.2(9) of the Special Conditions of Contract, execute the Works in accordance with the Technical Proposals (including any changes, amendments, modifications thereto or thereof approved, accepted, ordered or instructed by the Contract Manager in accordance with the Contract).

(2) Without prejudice to the generality of Clause 3.2 of the General Conditions of Contract, the Contractor shall procure experienced sub-contractor(s) all as required by the Technical Proposals and the Contractor shall not change the sub-contractor(s) without the prior written approval of the Contract Manager. Subject to the approval of the Contract Manager, a substitute or replacement of the sub-contractor(s) shall have no less experience. Any cost saving as a result of the said substitution or replacement of the sub-contractor(s) shall be determined by the Surveyor in the same manner as a sum to be deducted from the Contract Sum in respect of a Variation in accordance with Clause 11.3

of the General Conditions of Contract and shall be taken into account in the calculation of the Final Contract Sum.

(3) If it is legally or physically impossible for the Contractor to execute the Works in accordance with the Technical Proposals, the Contractor shall immediately inform the Contract Manager in writing and, subject to prior written approval of the Contract Manager, forthwith make all necessary modifications or amendments to the Technical Proposals so as to enable the Works to be executed and completed in accordance with the requirements of the Contract and shall execute the Works in accordance with the Technical Proposals as modified or amended to the satisfaction of the Contract Manager.

(4) If it is legally or physically impossible for the Contractor to execute the Works in accordance with the Technical Proposals modified or amended in accordance with Clause SCC4.2(3) of the Special Conditions of Contract, the Contractor shall further modify or amend the Technical Proposals in accordance with the same requirements and procedures and perform the same obligations as required in or under Clause SCC4.2(3) of the Special Conditions of Contract.

(5) The Contractor shall within 21 days when so requested by the Surveyor give detailed information on the estimated cost of execution of the Works in respect of or in connection with such modifications or amendments of or to the Technical Proposals referred to in Clause SCC4.2(3) or SCC4.2(4) of the Special Conditions of Contract (as the case may be).

(6) Any saving to the Contractor arising from such modifications or amendments of or to the Technical Proposals referred to in Clauses SCC4.2(3) and/or SCC4.2(4) of the Special Conditions of Contract shall be determined by the Surveyor in the same manner as a sum to be deducted from the Contract Sum in respect of a Variation in accordance with Clause 11.3 of the General Conditions of Contract and shall be taken into account in the calculation of the Final Contract Sum.

(7) The Contractor shall not be entitled to any additional payment or extension of time for the execution of the Works in accordance with such changes, modifications or amendments of or to the Technical Proposals referred to in Clauses SCC4.2(2), SCC4.2(3) and/or SCC4.2(4) of the Special Conditions of Contract save and except that the foregoing shall not apply to any changes, modifications or amendments arising from the Contractor's compliance with a Variation.

(8) Any obligation of the Employer and/or Contract Manager specified or implied in the Technical Proposals and/or such changes, modifications or amendments of or to Technical Proposals referred to in Clauses SCC4.2(2), SCC4.2(3) and/or SCC4.2(4) of the Special Conditions of Contract which is not an obligation of the Employer or, as the case may be, the Contract Manager under other documents forming part of the Contract shall have no effect and shall not be binding on the Employer or, as the case may be, the Contract Manager.

(9) Any right of the Contractor specified or implied in the Technical Proposals and/or such changes, modifications or amendments of or to Technical Proposals referred to in Clauses SCC4.2(2), SCC4.2(3) and/or SCC4.2(4) of the Special Conditions of Contract which is not a right of the Contractor under other documents forming part of the Contract shall have no effect.

SCC5 GENERAL OBLIGATIONS

SCC5.1 On-demand bond

Clause 5.3 of the General Conditions of Contract is amended by adding the following as Clauses 5.3(3) to 5.3(13):-

(3) The Employer shall have the right to call upon the bond at any time as provided in the bond and use any sum paid to him under the bond or any part thereof for the purposes stated in Clauses 5.3(4) and 5.3(8).

(4) The Employer may use any sum paid to him under the bond or any part thereof to pay or settle any or all of the following claims (any sum paid to the Employer under the bond or any part thereof that is used by the Employer to pay or settle any or all of the following claims is hereinafter referred to as the "Forfeited Sum"):-

(a) any claim filed by an employee of the Contractor in the office of the Labour Department in respect of or in connection with the Contractor's default in payment of any wages of such employee with proof thereof (including, where the claim is disputed by the Contractor or it is found necessary by the Commissioner for Labour, proof of final determination of the claim by an award or order of the Labour Tribunal or as the case may be the Minor Employment Claims Adjudication Board or a judgment of the District Court or, where the matter is subsequently further disputed by way of appeal, by a judgment of the appellant court) furnished to the satisfaction of the Commissioner for Labour, and

(b) where the Contractor is liable to an employee of his sub-contractors of any tier including Specialist Sub-contractors but excluding Nominated Sub-contractors for the first two months of the wages in arrears under section 43C of the Employment Ordinance (Cap. 57), any claim filed by the employee in the office of the Labour Department with proof thereof (including, where the claim is disputed by the sub-contractor (as the employer of the employee), or it is found necessary by the Commissioner for Labour, proof of final determination of the claim by an award or order of the Labour Tribunal or as the case may be the Minor Employment Claims Adjudication Board or a judgment of the District Court or, where the matter is subsequently further disputed by way of appeal, by a judgment of the appellant court) furnished to the satisfaction of the Commissioner for Labour.

(5) In the event that the Employer has exercised his right to use the Forfeited Sum as provided for in Clause 5.3(4), the Forfeited Sum shall be or be deemed to be forfeited without the Employer being required to give notice to the Contractor and the Employer shall not be required to account to the Contractor for the Forfeited Sum, irrespective of whether the Contractor has been in default or breach under the Contract or any law, or whether the Employer has suffered any losses or damages as a result of any default or breach on the part of the Contractor under the Contract or any law.

(6) Any forfeiture of the Forfeited Sum or any part thereof shall in no event or circumstance be or be treated, considered, construed or deemed as a penalty under the Contract or at law or otherwise. The Contractor hereby expressly agrees, confirms and declares that he understood fully and was well aware and with the contemplation, before the Tender Closing Date, that:-

(a) any sum paid under the bond or any part thereof that is used by the Employer as the Forfeited Sum shall be or be deemed to be forfeited by the Employer, and

(b) the said forfeiture shall neither be nor be treated, considered, construed or deemed as a penalty under the Contract or at law or otherwise, and

(c) the Employer shall not in any event or circumstance be required to account to the Contractor for the Forfeited Sum or any part thereof under the Contract or at law or otherwise,

and, in relation thereto and in consideration thereof, the Contractor has given and allowed and shall be deemed to have given and allowed sufficient consideration, rates, prices, sums and allowance in the Tender to cover, insure and protect himself against the said or any forfeiture and the said or any unaccountability of the Employer in relation to the Forfeited Sum under this Clause 5.3. For the avoidance of doubt, the Contractor shall not, and hereby expressly waives his right (if any) to, demand, claim or recover or institute any action or proceedings to demand, claim or recover the Forfeited Sum or any part thereof.

(7) The use of the Forfeited Sum by the Employer for payment or settlement for or of any claims filed by the employees or any of them as stated, allowed or provided for in or under Clause 5.3(4) will or may be in the interests and/or for the benefit of the Employer and the Contractor as or where:-

(a) the possibility or risk of the progress of the Works being affected, hampered or delayed by any sluggishness, suspension or stoppage of works on Site by such employees or employee as a result of any non-payment of wages or wages in arrears will or may be reduced, avoided or eliminated, and/or

(b) such payment(s) or settlement(s) will or may maintain or help maintain the public image of the Employer as a good and responsible public body, and the Contractor as a good and responsible employer and/or principal contractor of such employees or employee, and/or

(c) it is or will be the common wish and good intention of both the Employer and the Contractor that such payment(s) or settlement(s) will or may ease or abate or help ease or abate any financial burden, hardship or difficulty which such employees or employee will or may undergo, encounter or suffer as a result of any non-payment of wages or wages in arrears.

(8) The Employer may also use any sum paid to him under the bond or any part thereof to set off any money due or becoming due by the Contractor to the Employer under the Contract or any other contracts or agreements between the Employer and the Contractor or at law.

(9) Should there be a balance of any sum paid to the Employer under the bond after deduction or taking account of:-

(a) all Forfeited Sums and any sum paid under the bond to be used as a Forfeited Sum, and

(b) all set-offs made or to be made by the Employer under or in accordance with Clause 5.3(8),

such balance will be released or paid to the Contractor without interest at a time to be solely determined by the Employer. In no event or circumstance shall the Contractor be entitled to demand or claim any losses, damages, interest, charges or costs in respect of or in connection with such balance or such sum or any part thereof or any retention or withholding thereof by the Employer.

(10) The rights of the Employer under this Clause 5.3 (hereinafter referred to as the "GCC5.3 Rights") shall be independent of and distinct from other rights of the Employer under the Contract including but not limited to those rights under Clause 6.2 (such other rights hereinafter referred to as the "Other Rights under the Contract"). For the avoidance of doubt, the GCC5.3 Rights shall be further and in addition to the Other Rights under the Contract, and the Employer shall be allowed to exercise either the GCC5.3 Rights or the

Other Rights under the Contract or both at the same time or one after the other without any restriction or limitation.

(11) The Contractor agrees, confirms and declares that he has given and allowed and shall be deemed to have given and allowed sufficient consideration, rates, prices, sums and allowance in the Tender to satisfy and cover all the requirements, risks, consequences, liabilities and obligations under or arising from this Clause 5.3 and the Contract (including the bond and the calling upon thereof) or otherwise, and the Contractor understood fully and was well aware and with the contemplation, before and at the time of submitting the Tender, of all the strict obligations and liabilities imposed on the Contractor by or under the deeming provision of Clause 5.5 and all the consequential legal and cost effects thereof or thereunder.

(12) The Contractor shall also procure an on-demand bond from each of the Nominated Sub-contractors (hereinafter referred to as "the NSC Bond") in favour of the Employer and to the requirements of, in the form provided and in the sum stated in, the Nominated Sub-contract. The Contractor shall provide the Employer with the NSC Bond of a Nominated Sub-contractor within 42 days of the acceptance of the Nominated Sub-contractor's tender by the Contractor.

(13) Notwithstanding any other provision of the Contract, provision by the Contractor of the bond and all the NSC Bonds in accordance with this Clause 5.3 shall be a condition precedent to the Contractor's entitlement to any payment or any further payment, as the case may be, under the Contract and in the event that the bond but not all the NSC Bonds are provided to the Employer and the default is not, in the opinion of the Employer, due to the Contractor's fault, the Employer may release to the Contractor payment or further payment, as the case may be, under the Contract subject to withholding and deduction therefrom by the Employer of any payment or sum or any further payment or sum, as the case may be, in respect of the Nominated Sub-contractor who has failed to provide his NSC Bond to the Contractor in accordance with the Nominated Sub-contract.

SCC5.2 Works to be to the satisfaction of the Contract Manager

(Guidance Note: For use in building contract adopting the two-envelope tendering system and use in conjunction with either Option A or Option B of Clause SCC4.2.

(i) # Where Clause SCC4.2 (Option A) is used, delete the words "Clauses SCC4.2(3) and SCC4.2(4)";or

(ii) * Where Clause SCC4.2 (Option B) is used, delete the words "Clauses SCC4.2(2) and SCC4.2(3)".)

Clause 5.6 of the General Conditions of Contract is amended by adding "(except the legal and physical impossibilities referred to in *Clauses SCC4.2(2) and SCC4.2(3)/ #Clauses SCC4.2(3) and SCC4.2(4) of the Special Conditions of Contract)" after "physically impossible" in line 1.

SCC5.3 Not used

SCC5.4 Design responsibility (adjustment)

[Guidance Note: For use where the Contractor is responsible for the design and execution of part of the Works, and the design is to be established at Tender acceptance.]

Further to Clause 5.15 of the General Conditions of Contract, where the Contract specifies that the Contractor shall design and be responsible for the design of any part of the Works pursuant to this Clause SCC5.4 of the Special Conditions of Contract then:-

(1) The Contractor shall not vary the design for the part of the Works without first obtaining the written permission of the Contract Manager.

(2) If after the date of the Letter of Acceptance, the Contractor is permitted to change his design from that which has been accepted by the Employer within the meaning of the Specification at the time of the Letter of Acceptance, and if such change would result, after taking into account redesign costs, in a reduction in Cost of the part of the Works, then such reduction shall be deducted from the Contract Sum when calculating the Final Contract Sum. No adjustment shall be made to the Contract Sum for any other changes in the Contractor's Design, except as a result of a Variation.

SCC5.5 Contracts (Rights of Third Parties) Ordinance

SCC approved on 16.09.2015

Nothing in this Contract confers or purports to confer on any third party any benefit or any right pursuant to the Contracts (Rights of Third Parties) Ordinance (Cap. 623) to enforce any term of the Contract.

SCC5.6 Care of the Works

SCC approved on 10.06.2021

Clause 5.12(1) of the General Conditions of Contract is amended by substituting with the following :-

(1) The Contractor shall (from and including the date for commencement of the Works as notified by the Contract Manager under Clause 8.1 up to and including the day 45 days after the date of completion of the Works certified by the Contract Manager under Clause 8.7 but in the event of the Employer taking possession of the Works earlier, then up to and including the day 45 days after such date of possession) take full responsibility for the care of the Works and subject to Clause 5.11(2) any Specialist Works, and for the care of any Constructional Plant, temporary buildings and materials and things whatsoever on the Site or delivered to or placed on the Site in connection with or for the purpose of the Works or any Specialist Works.

Provided that when a Section or part of the Works is completed before completion of the Works, the Contractor shall be responsible for the care of such Section or part of the Works up to and including the day 45 days after the date of completion therefor as certified under Clause 8.7.

Provided further that the Contractor shall take full responsibility for the care of any outstanding work (which he shall have undertaken to finish during the Maintenance Period) and any Enhancement Works (which may be ordered under Clause 11.9) until such outstanding work and Enhancement Works are completed in accordance with the Contract, and shall continue to be responsible for all things or items which are required to be retained on the Site during the Maintenance Period including Constructional Plant, temporary buildings and materials and other facilities provided for the use of the Contract Manager, the Contract Manager's Representative and any persons authorized by the Contract Manager, the Contract Manager's Representative or the Employer.

SCC5.7 Care of the Works insurance

SCC approved on 10.06.2021

Clause 5.33(1) of the General Conditions of Contract is amended by substituting with the following :-

(1) Without limiting the Contractor's obligations and responsibilities under Clause 5.12, the Contractor shall procure before the date for commencement of the Works as notified by the Contract Manager under Clause 8.1, in the joint names of the Contractor, the Employer and the Contractor's sub-contractors of any tier an insurance policy for care of the Works and any Specialist Works covering the period from and including such notified date for commencement of the Works up to and including the day 45 days from the date of completion of the Works as certified by the Contract Manager under Clause 8.7, provided that should the Works be completed in Sections, the period of insurance for a Section shall cover the period from and including the date for commencement of such Section up to and including the day 45 days from the date of completion of such Section as certified by the Contract Manager under Clause 8.7.

SCC5.8 Prohibition of offering gratuities

SCC approved on 01.12.2022

Clause 5.30(1) of the General Conditions of Contract is amended by substituting with the following:-

(1) If the Contractor or any of his employees, representatives or agents shall be found to have offered or given any advantage as defined in the Prevention of Bribery Ordinance (Cap. 201) when conducting business in connection with the Contract to any employee, representative or agent of the Employer, to the Contract Manager or to any member of the Contract Manager's staff or to the Surveyor or any member of the Surveyor's staff, the Employer may terminate the employment of the Contractor under Clause 15.1 and hold the Contractor liable for any loss or damage which the Employer may thereby sustain.

SCC5.9 Sale of Goods (United Nations Convention) Ordinance

SCC approved on 01.12.2022

The Employer and the Contractor agree that the provisions of the United Nations Convention on Contracts for the International Sale of Goods shall not apply to this Contract.

SCC6 LABOUR

SCC6.1 Payment of wages of Site Personnel

Rev. 2 approved on 01.12.2022

(1) For the purpose of this Clause SCC6.1 of the Special Conditions of Contract, "sub-contractors" means sub-contractors, irrespective of tiers, including Specialist Sub-contractors and Nominated Sub-contractors.

(2) Site Personnel shall be engaged in accordance with this Clause SCC6.1 of the Special Conditions of Contract and/or as specified in the Specification. Such Site Personnel shall be engaged with a written employment contract with their respective employers who shall either be the Contractor or any of his sub-contractors, as submitted in the Sub-contractors Management Plan required under the Contract. The terms of the employment contract shall not be less favourable to the terms provided in the "Specimen Employment Contract" as specified in the Specification and the wage period in respect of which the wages are payable under the employment contract shall not be longer than one month, as far as the Site Personnel are concerned.

(3) (a) No Self-employed Worker shall be engaged in the execution of any part of the Works which involves any trade as referred to in Clause 3.2(9)(a) of the General Conditions of Contract.

(b) The Contractor shall ensure that the Self-employed Workers engaged by him or his sub-contractors to work on the Site shall each be covered by a personal accident insurance plan with a minimum coverage of HK$1,000,000 by either extending the Contractor's Employee Compensation Insurance policy as required by the law or his third party liability and all risks insurance policy. Alternatively, the Contractor shall

arrange a separate personal accident insurance plan with a minimum coverage of HK$1,000,000 for each of the Self-employed Workers in the form as provided in the appendix to the Conditions of Contract and shall maintain such policy for the duration of the Self-employed Workers being engaged in the Contract. The Contractor shall produce evidence of procurement of such insurance before the Self-employed Workers are issued with smart cards as described in the Specification. The Contractor shall inform the Contract Manager immediately when the insurance policy of a Self-employed Worker has expired together with evidence showing its renewal as appropriate.

(4) The Contractor shall provide and maintain a site access control and recording system with smart-card to record and verify the information of all Site Personnel entering and leaving the Site in accordance with the Specification.

(5) The Contractor shall implement the arrangement on payment of wages and on payment of Mandatory Provident Fund (hereinafter referred to as "MPF") contribution to Site Personnel as specified in the Contract. The Contractor shall keep records of transactions for payment of wages and MPF contributions, and submit a written declaration at monthly intervals to the Contract Manager declaring that all wages of the Site Personnel payable have been paid and all MPF contribution have been made in accordance with the Specification.

(6) The Contractor shall provide assistance, facilities and information including access to the source of the provided information for verification purpose to the Labour Relations Officer for them to execute their duties as specified in the Specification.

(7) Pursuant to Clause 3.2(3) of the General Conditions of Contract, failure to comply with this Clause SCC6.1 of the Special Conditions of Contract or the Specification in relation thereto by any of the sub-contractors may lead to the removal of the sub-contractor from the Site and/or the Works.

SCC7 MATERIALS AND WORKMANSHIP

SCC7.1 Warranty (piling, pilecaps and footings*)

The Contractor shall unconditionally warrant to the Employer that the piles, pilecaps and shallow foundations including footings (raft/pad)* as designed and constructed will be adequate to carry the loads specified in the Contract and shall hereby indemnify and keep indemnified the Employer against any claims, demands, proceedings, damages, costs, charges and expenses whatsoever that may arise directly or consequentially as a result of any defect, imperfection, fault or settlement therein during or after the construction of the buildings and structures.

[Guidance Note: *Delete/amend by the PQS as appropriate]

SCC7.2 Structural warranty

Rev. 1 approved on 01.12.2022

(1) For the purpose of this Clause SCC7.2 of the Special Conditions of Contract, "Building Structure" means the structure and foundation of the building prescribed by the Contract to be subject to the terms of this structural warranty.

(2) The Contractor shall unconditionally warrant to the Employer that:-

(a) the materials and workmanship for the Building Structure, and

(b) where any Building Structure or part thereof is expressly required by the Contract to be designed by the Contractor, the design of the Building Structure or parts thereof

shall be in accordance with the Contract.

(3) The Contractor shall be responsible under this warranty for executing works of repair to those defects in the Building Structure, including but without limitation, spalling and cracking:-

(a) which, notwithstanding the issue of any partial maintenance certificates and the maintenance certificate under Clause 14.3 of the General Conditions of Contract, are in the reasonable opinion of the Employer or the Contract Manager due to the Contractor's failure to execute the Works in accordance with the Contract, and

(b) which are identified and referred to the Contractor by the Employer or the Contract Manager within the warranty period of ten/twenty* years commencing from the date stated in the certificate of completion given under Clause 8.7 of the General Conditions of Contract in respect of the Works or part thereof.

[Guidance Note: *Delete "ten" for building projects in Tin Shui Wai or delete "twenty" for building projects not in Tin Shui Wai]

(4) Provided that the works of repair attributable to the following causes shall not be covered by this warranty:

(a) defects in the non-structural elements of the building which do not arise out of or are not caused by defects in the Building Structure,

(b) structural alterations or additions, changes or improper use of the Works by any person other than the Contractor, his sub-contractors or his agents, employees or workers of the Contractor or his sub-contractors, or

(c) damage not caused by the Contractor, his sub-contractors or his agents, employees or workers of the Contractor or his sub-contractors, arising from:-

(i) outbreak of fire or explosion of inflammable gas, earthquake, or landslide, or

(ii) the "excepted risks" as set out in Clause 5.12(4) of the General Conditions of Contract.

(5) Provided further that the Contractor shall not be responsible under this warranty for works of repair arising from inadequacy or unsuitability of any design or specification insofar as such design and specification do not form part of the Contractor's responsibility under the Contract.

(6) When carrying out works of repair pursuant to this warranty, the Contractor shall restore any part of the building or finishes disturbed to an as new condition as far as reasonable, having regard to the circumstances, age and usage of that part of the building or finishes so disturbed, and shall indemnify and keep the Employer indemnified against any liability, claims, demands, proceedings, damages, costs or charges arising out of or in connection with the carrying out the said works of repair and restoration work.

(7) If the Contractor fails to carry out the works of repair as required by Clause SCC7.2(3) of the Special Conditions of Contract, the Employer shall be entitled after giving reasonable notice in writing to the Contractor, to have such work carried out by his workers or by other contractors, and to recover from the Contractor any expenditure incurred in connection therewith.

(8) Any dispute or difference arising out of or in connection with this warranty shall be resolved by the dispute resolution procedure stipulated in Clause 17.1 of the General Conditions of Contract.

SCC7.3 Warranty and deed of warranty (roofing installation, refuge floor installation and/or other waterproofing system installation)

[Guidance Note:

- The Roofing Installation, the Refuge Floor Installation or the Waterproofing System Installation in the Clauses SCC7.3(1)(a), SCC7.3(1)(b), SCC7.3(1)(c), SCC7.3(2)(a), SCC7.3(2)(b), SCC7.3(2)(c), SCC7.3(3), SCC7.3(6) and SCC7.3(7) are to be deleted by the PQS as appropriate.]

Rev. 2 approved on 01.12.2022

(1) The Contractor shall unconditionally warrant to the Employer that:-

(a)# the roofing installation including that of the waterproofing membrane, insulation, screeding, roofing tiles, and expansion joints and fittings and accessories (hereinafter referred to as "Roofing Installation"),

(b)# the floor finishing installation to the refuge floor including any waterproofing membrane, insulation, screeding and floor tiles (hereinafter referred to as "Refuge Floor Installation"), and

(c)# other waterproofing system installation to the areas as specified in the Contract comprising, as the case may be, the waterproofing membrane (whether liquid, sheet or other forms of application), screeding (with or without waterproofing additives), insulation, tiles, joints, fittings and accessories (hereinafter referred to as "Waterproofing System Installation")

shall remain watertight and free from leakage or defect for a period of ten years from the date of completion certified by the Contract Manager in the certificate of completion issued under Clause 8.7 of the General Conditions of Contract. Where the Works are phased for completion in Sections, the expression "certificate of completion" shall, for the purposes of this Clause SCC7.3 of the Special Conditions of Contract, mean the certificate of completion issued in respect of the Section in which the Roofing Installation#, the Refuge Floor Installation# or the Waterproofing System Installation#, as the case may be, are certified completed.

(2) Notwithstanding the foregoing, the Contractor shall not be held responsible for:-

(a)# any leakage or defect in the Roofing Installation; and

(b)# any leakage or defect in the Refuge Floor Installation; and

(c)# any leakage or defect in the Waterproofing System Installation

which is due to structural movement if such structural movement is not attributable to any default of the Contractor.

(3) If the Contractor is in breach of the warranty as provided in this Clause SCC7.3 of the Special Conditions of Contract, the Contractor shall, upon notification by the Employer or Contract Manager, promptly and at his own expense, repair, rectify, or make good any leakage or defect of the Roofing Installation#, the Refuge Floor Installation# or the Waterproofing System Installation# to the satisfaction of the Employer and/or Contract Manager. In carrying out such work, the Contractor shall adhere to such directions or conditions as may be imposed by the Employer or Contract Manager. Further, the Contractor shall indemnify the Employer against all losses, expenses and claims for injury or damage to any person or property whatsoever which may arise out of or in consequence of the Contractor's breach of the warranty. The right of the Employer under this Clause SCC7.3(3) of the Special Conditions of Contract is without prejudice to any other rights which the Employer may have against the Contractor for breach of warranty or otherwise.

(4) In carrying out any work of repair or rectification, or making good any leakage or defect pursuant to this Clause SCC7.3 of the Special Conditions of Contract, the Contractor shall at his own expense make good, restore or reinstate any part of the buildings or structures or finishes that were damaged, disturbed or affected to their prior conditions. Further, the Contractor shall indemnify and keep the Employer indemnified against any liability, claims, demands, proceedings, damages, costs or charges arising out of the carrying out of the said work of repair or rectification, or making good the said leakage or defect.

(5) If the Contractor fails or refuses to carry out the work of repair or rectification, or make good any leakage or defect as required by the Employer or Contract Manager under Clauses SCC7.3(3) and/or SCC7.3(4) of the Special Conditions of Contract, the Employer shall be entitled, without prejudice to other rights which the Employer may have against the Contractor, to have such work carried out by his workers or by other contractors without further notice, and to recover from the Contractor any loss or damages suffered or cost or expenditure incurred in connection therewith.

(6) In addition to the obligations under Clauses SCC7.3(1) to SCC7.3(5) of the Special Conditions of Contract, the Contractor shall (at no cost to the Employer and within 28 days from the date of completion of the Works as certified by the Contract Manager in the certificate of completion, but in the event of there being more than one certificate of completion, then from the date of completion of the Section in which the Roofing Installation#, the Refuge Floor Installation# or the Waterproofing System Installation# (as the case may be) is situated as certified by the Contract Manager in the certificate of completion, issued under Clause 8.7 of the General Conditions of Contract) provide the Employer with a deed of warranty (from each of the sub-contractors (hereinafter referred to as "the Relevant Warrantor") for the supply and installation of the Roofing Installation#, the Refuge Floor Installation# or the Waterproofing System Installation# (as the case may be) as required under the Contract) in respect of the Roofing Installation#, the Refuge Floor Installation# or the Waterproofing System Installation# (as the case may be) in favour of the Employer in the form as provided in the appendices to the Conditions of Contract.

For the avoidance of doubt,

(a) it is the Contractor's responsibility to ensure that he is able to contractually require the Relevant Warrantor to provide the required deed of warranty to the Employer;

(b) the Contractor shall liaise and co-ordinate with and use his best endeavour to compel the Relevant Warrantor to submit the deed of warranty in a timely manner; and

(c) deed of warranty of the Relevant Warrantor provided by the Contractor in accordance with Clause SCC7.3(6) of the Special Conditions of Contract shall not relieve the Contractor of any of his other liabilities or obligations under this Clause SCC7.3 of the Special Conditions of Contract or the Contract or otherwise.

(7) The Contractor shall further unconditionally warrant that the Relevant Warrantor shall supply and install the Roofing Installation#, the Refuge Floor Installation# or the Waterproofing System Installation# (as the case may be) in accordance with all the drawings, specifications, terms and requirements of the sub-contract between the Contractor and such Relevant Warrantor in so far as the same relate to the supply and installation of the Roofing Installation#, the Refuge Floor Installation# or the Waterproofing System Installation# (as the case may be). The Contractor shall, within 14 days after request in writing by the Contract Manager or the Employer, provide the Contract Manager or the Employer as the case may be (at no charge to the Employer) with a copy of the sub-contract between the Contractor and any Relevant Warrantor (including any other document(s) relating thereto or stated therein) in so far as such sub-contract and other document(s) relate to the supply and installation of the Roofing Installation#, the

Refuge Floor Installation# or the Waterproofing System Installation# (as the case may be).

(8) The warranty in or under this Clause SCC7.3 of the Special Conditions of Contract and the deed of warranty of the Relevant Warrantor provided by the Contractor in accordance with Clause SCC7.3(6) of the Special Conditions of Contract shall be without prejudice to and shall not be deemed or construed so as to limit or exclude any rights or remedies which the Employer may have against the Contractor or any other third party or person whether under the Contract or in tort or otherwise.

(9) The Employer shall be entitled to assign the benefits of the warranty in or under this Clause SCC7.3 of the Special Conditions of Contract and the deed of warranty of the Relevant Warrantor provided by the Contractor in accordance with Clause SCC7.3(6) of the Special Conditions of Contract at any time without the consent of the Contractor being required.

SCC7.4 Warranty (multi-layer acrylic paint)

(1) The Contractor shall unconditionally warrant to the Employer that the multi-layer acrylic paint finish (including any backing, concrete or the blockwork surfaces, as the case may be, to receive the backing or the multi-layer acrylic paint finish), to be free from peeling, cracking or discoloration for a warranty period of seven years from the date of completion certified by the Contract Manager in the certificate of completion issued under Clause 8.7 of the General Conditions of Contract. Where the Works are phased for completion in Sections, the expression "certificate of completion" shall, for the purpose of this Clause SCC7.4 of the Special Conditions of Contract, mean the certificate of completion issued under Clause 8.7 of the General Conditions of Contract in which the multi-layer acrylic paint finish is certified completed.

(2) Notwithstanding the foregoing, the Contractor shall not be held responsible for any peeling, cracking or discoloration of the multi-layer acrylic paint finish which is due to structural movement if such structural movement is not attributable to any default of the Contractor.

(3) If the Contractor is in breach of the warranty as provided in this Clause SCC7.4 of the Special Conditions of Contract, the Contractor shall, upon notification by the Employer or Contract Manager, promptly and at his own expense, repair, rectify, or make good any of the said peeling, cracking or discoloration of the multi-layer acrylic paint finish to the satisfaction of the Employer or Contract Manager. In carrying out such work, the Contractor shall adhere to such directions and conditions as may be imposed by the Employer or Contract Manager. Further, the Contractor shall indemnify the Employer against all losses, expenses and claims for injury or damage to any person or property whatsoever which may arise out of or in consequence of the Contractor's breach of the warranty. The right of the Employer under this Clause SCC7.4(3) of the Special Conditions of Contract is without prejudice to any other rights which the Employer may have against the Contractor for breach of warranty or otherwise

(4) In carrying out any work of repair or rectification, or making good any peeling, cracking or discoloration of the multi-layer acrylic paint finish pursuant to this Clause SCC7.4 of the Special Conditions of Contract, the Contractor shall at his own expense make good, restore or reinstate any part of the buildings or structures or finishes that were damaged, disturbed or affected to their prior conditions. Further, the Contractor shall indemnify and keep the Employer indemnified against any liability, claims, demands, proceedings, damages, costs or charges arising out of the carrying out of the said work of repair or rectification, or the making good the said peeling, cracking or discoloration of the multi-layer acrylic paint finish.

(5) If the Contractor fails or refuses to carry out the work of repair or rectification, or make good any peeling, cracking or discoloration of the multi-layer acrylic paint finish as required by the Employer or Contract Manager under Clauses SCC7.4(3) and/or SCC7.4(4) of the Special Conditions of Contract, the Employer shall be entitled, without prejudice to other rights which the Employer may have against the Contractor, to have such work carried out by his workers or by other contractors without further notice, and to recover from the Contractor any loss or damages suffered or cost or expenditure incurred in connection therewith.

SCC7.5 Warranty (wall tiling works)

(1) For the purpose of this Clause SCC7.5 of the Special Conditions of Contract, "Wall Tiling Works" means tiles and tile fixing systems fixed or installed to or on walls and columns of any buildings or structures, including such associated fins, projections, recesses, beams, features, skirting and the like and such other areas, surfaces or locations as shown on the Drawings with tile fixing systems designed by the Contractor. The tile fixing systems shall include but not be limited to all necessary preparatory works, spatterdash, beds, screeds, renderings, grouting, slurries, adhesives, bonding agents, fixings and the like for the fixing or installation of the tiles.

(2) The Contractor shall unconditionally warrant to the Employer that he shall at his own expense repair, rectify, or make good any defect of the Wall Tiling Works as may be identified to him for a period of five years commencing from the day which is two years from the date of completion stated in the certificate of completion issued under Clause 8.7 of the General Conditions of Contract. Where there is more than one such certificate of completion, the 5-year period of warranty for the Wall Tiling Works of or in the buildings or structures shall commence from the day which is two years from the date of completion stated in the certificate of completion in respect of such buildings or structures. The Contractor shall, at his own expense, carry out such work of repair or rectification, or make good any defect of the Wall Tiling Works as soon as practicable upon notification by the Employer.

(3) The defects referred to in Clause SCC7.5(2) of the Special Conditions of Contract shall include but not be limited to visual de-bonding, de-lamination, bulging out and the like of the Wall Tiling Works.

(4) The Contractor shall be responsible for the design, construction and maintenance of the fixing system(s) of the Wall Tiling Works in compliance with the requirements specified in the Contract. Any fixing systems of the Wall Tiling Works as may be shown on the Drawings and/or described in the Specification are provided to the Contractor only as suggestions and on a without liability basis. The Employer, Contract Manager or any of their representatives shall not guarantee that such fixing system(s) meet the purposes and satisfy all requirements of the Contract and the Contractor shall not be relieved of his obligations and liabilities in respect of the fixing systems under the Contract. If the Contractor adopts any fixing system(s) of the Wall Tiling Works as may be shown on the Drawings and/or described in the Specification, the fixing system(s) adopted shall be the Contractor's own fixing system(s) of the Wall Tiling Works and he shall make sure that the fixing system(s) adopted meet the purposes and satisfy all requirements of the Contract. No liability whatsoever will be admitted or shall be borne by the Employer, Contract Manager or any of their representatives for the design, suitability, adequacy, workability, performance, safety or otherwise of such fixing system(s) adopted by the Contractor for the Wall Tiling Works. No adjustments shall be made to the Contract Sum for the actual fixing systems of the Wall Tiling Works as adopted by the Contractor. The warranty as referred to in Clause SCC7.5(2) of the Special Conditions of Contract shall remain in force unconditionally irrespective of whether the actual fixing systems of the Wall Tiling Works, which were used by the Contractor for the carrying out of the Wall Tiling Works, were adopted from any fixing systems that were shown on the Drawings and/or described in the Specification which had been provided to the Contractor only as suggestions and on a without liability basis.

(5) The Contractor shall submit his fixing systems of the Wall Tiling Works for the Contract Manager's approval. The Contract Manager shall have the right to reject the submission of the Contractor if it is not to his entire satisfaction. Neither the approval, with or without amendment that the Contract Manager may consider necessary, nor rejection by the Contract Manager of any such submission shall vitiate the Contract or relieve the Contractor from his responsibilities under the Contract; and such approval or rejection by the Contract Manager shall not entitle the Contractor to any extra payment or extension of time under the Contract or otherwise.

(6) In the event that the Contractor's fixing systems of the Wall Tiling Works induce changes to the dimensions of the works adjoining to the Wall Tiling Works all as shown on the Drawings and/or described in the Specification, the Contractor shall submit full details of such induced changes for the Contract Manager's approval. The Contractor shall be responsible for and guarantee the modified design of the works adjoining to the Wall Tiling Works and their satisfactory performance as a result of the induced changes, and shall indemnify and keep indemnified the Employer, his agents and employees against any liability, claims, demands, proceedings, damages, costs, charges and expenses whatsoever in respect thereof or in relation thereto. The Contractor shall compensate the Employer for any loss or expense arising therefrom. The Contractor shall not be entitled to any adjustments to the Contract Sum nor any extension of time in respect of the induced changes under the Contract or otherwise.

(7) Provided that the work of repair or rectification, or the making good of any defect of the Wall Tiling Works under the warranty referred to in Clause SCC7.5(2) of the Special Conditions of Contract shall not cover defects attributable to the following causes:-

(a) damage caused by vandalism, malicious acts or the like by any person other than the Contractor, his sub-contractors or the agents, employees or workers of the Contractor or his sub-contractors, or

(b) damage not caused by the Contractor, his sub-contractors or the agents, employees or workers of the Contractor or his sub-contractors , arising from:-

(i) outbreak of fire or explosion of inflammable gas, earthquake, or landslide, or

(ii) the "excepted risks" as set out in Clauses 5.12(4)(a) to 5.12(4)(f) and Clause 5.12(4)(i) of the General Conditions of Contract.

(8) When carrying out any work of repair or rectification, or making good any defect of the Wall Tiling Works pursuant to this Clause SCC7.5 of the Special Conditions of Contract, the Contractor shall make good, restore or reinstate any part of the buildings or structures or finishes damaged, disturbed or affected to an as new condition as far as reasonable, having regard to the circumstances, age and usage of the works so damaged, disturbed or affected, and shall indemnify and keep the Employer indemnified against any liability, claims, demands, proceedings, damages, costs or charges arising out of the carrying out of the said work of repair or rectification, or the making good the said defects.

(9) If the Contractor fails to carry out the work of repair or rectification, or make good any defect of the Wall Tiling Works as required by Clause SCC7.5(2) of the Special Conditions of Contract, the Employer shall be entitled, after giving reasonable notice in writing to the Contractor, to have such work carried out by his workers or by other contractors, and to recover from the Contractor any loss or damages suffered or cost or expenditure incurred in connection therewith.

SCC7.6 Warranty and deed of warranty for play equipment and IASM

Rev. 2 approved on 01.12.2022

(1) For the purpose of this Clause SCC7.6 of the Special Conditions of Contract, "Play Equipment" means the proprietary play equipment including fitness equipment as specified in and/or required under the Contract.

(2) For the purpose of this Clause SCC7.6 of the Special Conditions of Contract, "Impact Absorbing Surfacing Materials" or "IASM" means the proprietary all-weather permeable synthetic layer to the ground of designated play/fitness area, as specified in and/or required under the Contract.

(3) The Contractor shall unconditionally warrant to the Employer that he shall:-

(a) execute and complete the design, supply and installation of the Play Equipment and the Impact Absorbing Surfacing Materials (IASM) and carry out each and all of the obligations, duties and undertakings of the Contractor in relation thereto, in accordance with the Contract and the warranty under this Clause SCC7.6 of the Special Conditions of Contract, and

(b) supply the Employer with all information as the Employer may reasonably require from time to time in relation to the design, supply or installation of the Play Equipment and/or the IASM.

(4) Without prejudice to the generality of Clause SCC7.6(3) of the Special Conditions of Contract, the Contractor shall further unconditionally warrant to the Employer that:-

(a) he shall exercise all reasonable skill, care and diligence in connection with the design, supply and installation of the Play Equipment and the IASM and that selection and use of materials and goods in connection with the Play Equipment and the IASM shall be fit for the purposes and functions for which they are intended by the Employer and of good quality;

(b) the Play Equipment and the IASM shall conform to the Drawings, Specification, terms and requirements (including any performance requirements) as specified or required or implied from, in or under the Contract;

(c) the Play Equipment and the IASM shall be functional and safe for children play and recreational area uses including, where applicable, their suitability for fixing to ground surfaces or other receiving structures and the compatibility among their respective elements and components;

(d) the structural integrity of the Play Equipment and the timber parts and the polyethylene components of the Play Equipment shall be free from any defect, failure, imperfection or fault and be capable of carrying out its proper functions, throughout the respective periods of warranty as specified below:

Item	Period of warranty
a. Structural integrity of the Play Equipment	Ten years
b. Timber parts of the Play Equipment	Five years
c. Polyethylene components of the Play Equipment	Five years

and each of the periods of warranty stated above shall commence from the date of completion of the Works as certified by the Contract Manager in the certificate of

completion, but in the event of there being more than one certificate of completion, then from the date of completion of the Section of the Works in which the Play Equipment is situated as certified by the Contract Manager in the certificate of completion, issued under Clause 8.7 of the General Conditions of Contract; and

(e) the IASM shall be:-

(i) free from any defect, failure, imperfection or fault including but without limitation to: material loss of mechanical properties, impact attenuation performance, de-colouring, shrinkage, failure of adhesion to the base, loss of resilience, corrosion, distortion and similar under normal operational conditions; and any gap or space between adjoining IASM units being wider than 12mm, any point of the installed surface being higher than the mean level of the installed surface which is the level at the centre of the IASM units by 12mm due to expansion or shrinkage of the IASM units or whatsoever, the thickness of the IASM units being reduced by 12mm and failure of adhesion of the IASM units to the base, and

(ii) capable of carrying out its proper functions, for a period of five years from the date of completion of the Works as certified by the Contract Manager in the certificate of completion, but in the event of there being more than one certificate of completion, then from the date of completion of the Section of the Works in which the IASM is situated as certified by the Contract Manager in the certificate of completion, issued under Clause 8.7 of the General Conditions of Contract.

(5) (a) In the event of any defect, failure, imperfection or fault of, in, on or in respect of the Play Equipment or the IASM occurring or appearing or discovered at any time during any of the periods of warranty as referred to in Clause SCC7.6(4) of the Special Conditions of Contract, the Contractor shall as soon as reasonably practicable, but in no event later than 14 days after receipt of notification by the Contract Manager or the Employer, carry out at his own cost all repair or replacement work, including emergency and temporary work, which is, in the opinion of the Contract Manager or the Employer, necessary to ensure that the Play Equipment or the IASM (as the case may be) serves its intended purposes and functions and shall be restored to conform to the warranty under Clause SCC7.6(4) of the Special Conditions of Contract. All such repair or replacement work including emergency and temporary work shall be carried out by the Contractor at times as specified by the Contract Manager or the Employer so as not to interfere with the proper use and functioning of the completed Works. In the event that such repair or replacement work is not carried out by the Contractor in accordance with this Clause SCC7.6(5)(a) of the Special Conditions of Contract, the Employer may, without prejudice to any other remedy, proceed to carry out such work by its own workers or contractors and any cost incurred by the Employer resulting therefrom shall be a debt due to the Employer by the Contractor and shall be paid to the Employer by the Contractor immediately on demand.

(b) The Contractor shall indemnify and keep indemnified the Employer against all losses and claims for injury or damage to any person or property whatsoever which may be caused by such or any defect, failure, imperfection or fault of, in, on or in respect of the Play Equipment or the IASM mentioned in Clause SCC7.6(5)(a) of the Special Conditions of Contract or covered or included in, by or under the warranty under this Clause SCC7.6 of the Special Conditions of Contract or otherwise and against all claims, demands, proceedings, damages, costs, charges and expenses whatsoever in respect thereof or in relation thereto.

(c) The Contractor shall make good or, at the option of the Employer, pay to the Employer the cost of making good any damage, loss or injury which may occur to any property of the Employer or any third party or parties and to recompense the

Employer in respect of any damage, loss or injury which may occur to any employee of the Employer or any person caused by such or any defect, failure, imperfection or fault of, in, on or in respect of the Play Equipment or the IASM mentioned in Clause SCC7.6(5)(a) of the Special Conditions of Contract or covered or included in, by or under the warranty under this Clause SCC7.6 of the Special Conditions of Contract or otherwise.

(d) For the avoidance of doubt, in the carrying out of any repair or replacement work including any emergency and temporary work in accordance with Clause SCC7.6(5) of the Special Conditions of Contract, the Contractor shall at his own cost make good, restore or reinstate any part of roads, pavements, buildings, structures, areas or finishes that were damaged, disturbed or affected to their prior conditions. Further, the Contractor shall indemnify and keep the Employer indemnified against all liabilities, claims, demands, proceedings, damages, costs and charges arising out of or in consequence of the carrying out of any such repair or replacement work including emergency and temporary work or making good, restoration or reinstatement work.

(e) Provided that nothing in Clause SCC7.6(5) of the Special Conditions of Contract shall be deemed to render the Contractor liable to indemnify the Employer against any compensation or damages including all claims, demands, proceedings, damages, costs, charges and expenses in respect of or in relation to:-

(i) any defect, failure, imperfection or fault of, in, on or in respect of the Play Equipment or the IASM caused by work which was not carried out by the Contractor or his employees, servants, agents, representatives or sub-contractors and for which the Contractor or his employees, servants, agents, representatives or sub-contractors shall not be held responsible, or

(ii) any defect, failure, imperfection or fault of, in, on or in respect of the Play Equipment or the IASM caused by repair, maintenance or alteration to the Play Equipment or the IASM (other than the repair or replacement work carried out by the Employer's own workers or contractors in accordance with Clause SCC7.6(5) of the Special Conditions of Contract) done by persons other than the Contractor or his employees, servants, agents, representatives or sub-contractors after the date of completion of the Works as certified by the Contract Manager in the certificate of completion, but in the event of there being more than one certificate of completion, then from the date of completion of the Section in which the Play Equipment or the IASM (as the case may be) is situated as certified by the Contract Manager in the certificate of completion, issued under Clause 8.7 of the General Conditions of Contract.

(6) In addition to the obligations under Clauses SCC7.6(3) to SCC7.6(5) of the Special Conditions of Contract, the Contractor shall (at no cost to the Employer and within 28 days from the date of completion of the Works as certified by the Contract Manager in the certificate of completion, but in the event of there being more than one certificate of completion, then from the date of completion of the Section in which the Play Equipment or the IASM (as the case may be) is situated as certified by the Contract Manager in the certificate of completion, issued under Clause 8.7 of the General Conditions of Contract) provide the Employer with a deed of warranty (from each of the sub-contractors having been approved under the Contract (hereinafter referred to as "the Relevant Warrantor") for the design, supply and installation of the Play Equipment or the IASM (as the case may be) as required under the Contract) in respect of the Play Equipment or the IASM (as the case may be) in favour of the Employer in the form as provided in the appendices to the Conditions of Contract.

For the avoidance of doubt,

(a) it is the Contractor's responsibility to ensure that he is able to contractually require the Relevant Warrantor to provide the required deed of warranty to the Employer;

(b) the Contractor shall liaise and co-ordinate with and use his best endeavour to compel the Relevant Warrantor to submit the deed of warranty in a timely manner; and

(c) deed(s) of warranty of the Relevant Warrantor(s) provided by the Contractor in accordance with Clause SCC7.6(6) of the Special Conditions of Contract shall not relieve the Contractor of any of his other liabilities or obligations under this Clause SCC7.6 of the Special Conditions of Contract or the Contract or otherwise.

(7) The Contractor shall further unconditionally warrant that the Relevant Warrantor(s) shall design, supply and install the Play Equipment or the IASM (as the case may be) in accordance with all the drawings, specifications, terms and requirements of the sub-contract(s) between the Contractor and such Relevant Warrantor(s) in so far as the same relate to the design, supply and installation of the Play Equipment or the IASM (as the case may be). The Contractor shall, within 14 days after request in writing by the Contract Manager or the Employer, provide the Contract Manager or the Employer as the case may be (at no charge to the Employer) with a copy of the sub-contract(s) between the Contractor and any Relevant Warrantor (including any other documents relating thereto or stated therein) in so far as such sub-contract(s) and other document(s) relate to the design, supply and installation of the Play Equipment or IASM (as the case may be).

(8) The warranty in or under this Clause SCC7.6 of the Special Conditions of Contract and the deed(s) of warranty of the Relevant Warrantor(s) provided by the Contractor in accordance with Clause SCC7.6(6) of the Special Conditions of Contract shall be without prejudice to and shall not be deemed or construed so as to limit or exclude any rights or remedies which the Employer may have against the Contractor or any other or third party or person whether under the Contract or in tort or otherwise.

(9) The Employer shall be entitled to assign the benefits of the warranty in or under this Clause SCC7.6 of the Special Conditions of Contract and the deed(s) of warranty of the Relevant Warrantor(s) provided by the Contractor in accordance with Clause SCC7.6(6) of the Special Conditions of Contract at any time without the consent of the Contractor being required.

SCC7.7 Quality of materials, workmanship and tests

SCC approved on 06.01.2015

Clause 7.1(7) of the General Conditions of Contract is amended by substituting with the following :-

(7) Notwithstanding the other provisions of this Clause 7.1, any test carried out in the laboratories of the Employer or the Housing Department of the Government of the Hong Kong Special Administrative Region in connection with the Works shall be free of charge. For the avoidance of doubt, such laboratories shall not include the laboratories of Specialist Contractors.

SCC7.8 Warranty (epoxy coated cast iron pipework)

SCC approved on 22.09.2016

(1) For the purpose of this Clause SCC7.8 of the Special Conditions of Contract, "epoxy coated cast iron pipework" shall comprise epoxy coated cast iron pipes and fittings including coupling and grip collar joints of the Works.

(2) The Contractor shall, subject to the provisos of this Clause SCC7.8(2) of the Special Conditions of Contract, unconditionally warrant to the Employer that the material and workmanship of the epoxy coated cast iron pipework of the Works shall conform to the requirements as specified in the Contract and be fit for the purposes intended by the Employer without :-

(a) loss of air-tightness and water-tightness,

(b) loss of mechanical properties, chemical resistance and fire resistance,

(c) corrosion, rusting and deterioration including surface defect, crack, blister, peeling and loss of adhesion of internal or external coatings to pipes and fittings,

(d) distortion and deformation,

(e) misalignment and disconnection of pipework,

(f) breakdown in fastening components and joints, and

(g) other defects, faults and failures,

for a period of three years commencing from the day which is two years from the date of completion stated in the certificate of completion issued under Clause 8.7 of the General Conditions of Contract. Where the Works are phased for completion in Sections and there is more than one such certificate of completion, the three-year period of warranty for the epoxy coated cast iron pipework of the relevant Section shall respectively commence from the day which is two years from the date of completion stated in the certificate of completion in respect of such relevant Section.

Provided that the Contractor shall not be held responsible for any defect, default or failure in the epoxy coated cast iron pipework due to :-

(a) misuse, vandalism, malicious acts or the like damage caused by any person other than the Contractor, his sub-contractors or the agents, employees or workers of the Contractor or his sub-contractors, or

(b) improper maintenance and repair works including dismantling, modification, re-installation not carried out by the Contractor, his sub-contractors or the agents, employees or workers of the Contractor or his sub-contractors, or

(c) structural movement if such structural movement is not attributable to any default of the Contractor or his sub-contractors, or

(d) inadequate or unsuitable design insofar as such design do not form part of the Contractor's responsibility under the Contract, or

(e) damage not caused by the Contractor, his sub-contractors or the agents, employees or workers of the Contractor or his sub-contractors, arising from:-

(i) outbreak of fire or explosion of inflammable gas, earthquake, or landslide; or

(ii) the "excepted risks" as set out in Clauses 5.12(4)(a) to 5.12(4)(e) and 5.12(4)(g) to 5.12(4)(i) of the General Conditions of Contract.

(3) If the Contractor is in breach of the warranty as provided in this Clause SCC7.8 of the Special Conditions of Contract, the Contractor shall, upon notification by the Employer or the Contract Manager, promptly and at his own expense, repair, rectify, or make good any defect of the epoxy coated cast iron pipework to the satisfaction of the Employer or the Contract Manager. In carrying out such work, the Contractor shall adhere to such directions and conditions as may be imposed by the Employer or the Contract Manager. The right of the Employer under this Clause SCC7.8(3) of the Special Conditions of Contract is without prejudice to any other rights which the Employer may have against the Contractor for breach of warranty or otherwise.

(4) In carrying out any work of repair, rectification or making good of any defect of the epoxy coated cast iron pipework pursuant to this Clause SCC7.8 of the Special Conditions of Contract, the Contractor shall at his own expense make good, restore or reinstate any part of the buildings or structures or finishes to their prior conditions that were damaged, disturbed or affected by the Contractor's work of repair, rectification or making good of the defective epoxy coated cast iron pipework. Further, the Contractor shall indemnify and keep the Employer indemnified against any liability, claims, demands, proceedings, damages, costs or charges arising out of the carrying out of the said work of repair, rectification or making good of the said defect of the epoxy coated cast iron pipework.

(5) If the Contractor fails or refuses to carry out the work of repair, rectification or making good of any defect of the epoxy coated cast iron pipework as required by the Employer or the Contract Manager under Clause SCC7.8(3) or SCC7.8(4) of the Special Conditions of Contract, the Employer shall be entitled, without prejudice to other rights which the Employer may have against the Contractor, to have such work carried out by the Employer's workers or by other contractors without further notice, and to recover from the Contractor any loss or damages suffered or cost or expenditure incurred in connection therewith.

SCC8 COMMENCEMENT, COMPLETION AND DELAYS

SCC8.1 Possession of the Site (fixed rate for delay)

Clause 8.2 of the General Conditions of Contract is amended by adding the following:-

(3) Notwithstanding Clause 11.5(1)(a)(vi), with respect to prescribed Portions of the Site of which the Contractor is to be given possession from time to time, if the Contractor suffers delay as a result of the failure on the part of the Employer to give possession of any Portion in accordance with the terms of the Contract and the Contract Manager grants an extension of time for completion under Clause 8.4 in respect thereof, the Surveyor shall certify payment to the Contractor of a sum calculated at the rate for such Portion inserted by the Contractor in the Bills of Quantities (hereinafter referred to as the "Specified Rate"), the number of days for which payment is certified being equal to the number of days granted as an extension of time in respect thereof. If possession of part of any Portion is delayed the Surveyor shall reduce the Specified Rate for the affected Portion as he considers fair and reasonable having regard to all the circumstances.

(4) Any extension of time granted under Clause 8.4 and any payment made under Clause 8.2(3) shall be deemed to be in full compensation to the Contractor for any time lost and any expenditure incurred as a result of failure on the part of the Employer to give possession of any Portion or any part of any Portion.

SCC8.2 Extension of time for completion

Clause 8.4(2)(b) of the General Conditions of Contract is amended by renumbering Clause 8.4(2)(b)(xiii) of the General Conditions of Contract as Clause 8.4(2)(b)(xiv) and adding the following as Clause 8.4(2)(b)(xiii) of the General Conditions of Contract:-

(xiii) adverse ground conditions affecting the design and construction of piles, pilecaps and shallow foundations including footings (raft/pad)* which could not reasonably have been foreseen by an experienced contractor at the Tender Closing Date, notwithstanding the deeming provision in Clause 5.4(1) applicable to the Contractor, or

[Guidance Note: * Delete/amend by the PQS as appropriate]

SCC8.3 Additional Liquidated Damages for delay

[Guidance Note: Project team should consult SQS/CA Unit(s) for adoption of this SCC clause]

(1) Further to Clause 8.6 of the General Conditions of Contract if the Contractor fails to complete any Section specified in accordance with this Clause SCC8.3 of the Special Conditions of Contract (the "Specified Section") on or before the date for completion or any extension thereto, and the latest certified date of completion among the Specified Sections is later than the date for completion or any extension thereto for the relevant Section specified in accordance with this Clause SCC8.3 of the Special Conditions of Contract or the certified date of completion of the relevant Section, whichever is the latest, the Employer shall be entitled to recover from the Contractor additional liquidated damages (hereinafter referred to as the "Additional Liquidated Damages") which shall be calculated at the rate prescribed by the Contract for either the Works, the relevant Section or part of the relevant Section, whichever is applicable, and for the period calculated in accordance with Clause SCC8.3(3) of the Special Conditions of Contract.

(2) Clause 8.6 of the General Conditions of Contract shall apply to the Additional Liquidated Damages, except as otherwise provided in Clause SCC8.3(3) of the Special Conditions of Contract.

(3) For the purpose of calculation of the Additional Liquidated Damages, Clause 8.6(3) of the General Conditions of Contract is amended by substituting with the following:-

(3) The period for which the Additional Liquidated Damages shall be calculated shall be the number of days from and including the day following the date for completion or any extension thereof of the relevant Section or the certified date of completion of the relevant Section, whichever is the latest, until and including the day of the latest date of completion among the Specified Sections certified under Clause 8.7.

Provided that, if the Contract Manager subsequently grants an extension of time which affects the period described above, then the Employer shall reimburse the Contractor the Additional Liquidated Damages for the number of days so affected at the rate described in Clause SCC8.3(1) of the Special Conditions of Contract together with interest for the period commencing from the date on which the said liquidated damages were deducted from or paid by the Contractor until the day of actual payment of the reimbursement to the Contractor at the rate provided for in Clause 14.2(6) within 28 days of the granting of such extension of time.

SCC8.4 Second Liquidated Damages for delay (SSF)

Rev. 1 & 2 approved on 01.12.2022 & 28.12.2022 respectively

(1) Further to Clause 8.6 of the General Conditions of Contract the Employer shall be entitled to recover from the Contractor additional liquidated damages (hereinafter referred to as the "Second Liquidated Damages") which shall be calculated at the rate prescribed by the Contract for the Works, the relevant Section, part of the Works or part of the relevant Section, whichever is applicable.

(2) Clause 8.6 of the General Conditions of Contract shall apply to the Second Liquidated Damages, except as otherwise provided in Clause SCC8.4(3) of the Special Conditions of Contract.

(3) The period for which the Second Liquidated Damages shall be calculated shall be the number of days from and including the day following the date which is 90 days after the date for completion or any extension thereof of the Works or the relevant Section until and including the day of the date of completion certified under Clause 8.7 of the General Conditions of Contract.

Provided that, if the Contract Manager subsequently grants an extension of time which affects the period described above, then the Employer shall reimburse the Contractor the Second Liquidated Damages for the number of days so affected at the rate described in Clause SCC8.4(1) of the Special Conditions of Contract together with interest for the period commencing from the date on which the said liquidated damages were deducted from or paid by the Contractor until the day of actual payment of the reimbursement to the Contractor at the rate provided for in Clause 14.2(6) of the General Conditions of Contract within 28 days of the granting of such extension of time.

SCC8.5 Taking care of the Works after completion

(1) The Contract Manager may, by instructions issued to the Contractor, direct that commencing from the date of completion stated in the certificate of completion issued under Clause 8.7 of the General Conditions of Contract, the Contractor shall execute any of the works and/or provide any of the services set out in the Bills of Quantities or schedule of rates for taking care of the Works after completion until a date to be directed by a further instruction of the Contract Manager which date shall be before the expiry of the Maintenance Period.

(2) The terms and conditions of the Contract shall apply to all such works and/or services as may be instructed under Clause SCC8.5(1) of the Special Conditions of Contract and such works and/or services shall be deemed to be outstanding works as referred to in Clause 8.7(3) of the General Conditions of Contract and form part of the Works.

SCC8.6 Extension of time for completion

SCC approved on 21.08.2014

[Guidance Notes:

1. This SCC is for use in bundled contract that comprises building works and demolition works each of which is to be executed under a Section of its own and such Sections are in separate and detached site locations (e.g. building works in Fanling and demolition works in Tseung Kwan O).

2. * Fill in the blank with the designation of the Section with only demolition works to be carried out, and delete '*' and the underline '_____'.]

Clause 8.4 of the General Conditions of Contract is amended as follows :-

(1) Clause 8.4(1) is amended by substituting with the following :-

(1A) Within 42 days after the receipt by the Contract Manager of the Contractor's written application, the Contract Manager shall grant and notify in writing to the Contractor an extension of time for completion of Section ____* by one day for any single occurrence of the following prescribed events on any day falling within the time or extended time for completion (as the case may be) referred to in Clause 8.3(1) of Section ____*:-

(a) rainfall recorded at the Hong Kong Observatory, Nathan Road, Tsim Sha Tsui, Kowloon as exceeding twenty millimetres between midnight and midnight, or

(b) a Tropical Cyclone Warning Signal No. 3 or above issued by the Hong Kong Observatory, or

(c) a Black Rainstorm Warning issued by the Hong Kong Observatory.

Provided that consecutive occurrence and/or concurrent occurrence of any two or more of the circumstances described in this Clause 8.4(1A) in any single day shall be deemed to be a single occurrence for the purposes of this Clause 8.4(1A).

(1B) Within 42 days after the receipt by the Contract Manager of the Contractor's written application, the Contract Manager shall grant and notify in writing to the Contractor an extension of time for completion of a Section other than Section ___* by one day for any single occurrence of the following prescribed events on any day falling within the time or extended time for completion (as the case may be) referred to in Clause 8.3(1) of such Section:-

(a) rainfall recorded at the Hong Kong Observatory, Nathan Road, Tsim Sha Tsui, Kowloon as exceeding twenty millimetres between midnight and midnight, or

(b) a Tropical Cyclone Warning Signal No. 8 or above issued by the Hong Kong Observatory, or

(c) a Black Rainstorm Warning issued by the Hong Kong Observatory.

Provided that consecutive occurrence and/or concurrent occurrence of any two or more of the circumstances described in this Clause 8.4(1B) in any single day shall be deemed to be a single occurrence for the purposes of this Clause 8.4(1B).

(1C) For the avoidance of doubt, the terms "one day", "any day" and "single day" as stated in Clauses 8.4(1A) and 8.4(1B) shall include any day which is a General Holiday.

(2) Clause 8.4(2)(b)(i) is amended by substituting with the following :-

(iA) the effects of an event caused by inclement weather conditions in respect of which a Tropical Cyclone Warning Signal No. 3 or above being issued and in force on any day falling within the time or extended time for completion (as the case may be) referred to in Clause 8.3(1) of Section _____* in so far as such effects have adversely affected the progress of Section _____* subsequent to the day of the lowering of the Tropical Cyclone Warning Signal No. 3, or

(iB) the effects of an event caused by inclement weather conditions in respect of which a Tropical Cyclone Warning Signal No. 8 or above being issued and in force on any day falling within the time or extended time for completion (as the case may be) referred to in Clause 8.3(1) of a Section other than Section _____* in so far as such effects have adversely affected the progress of such Section subsequent to the day of the lowering of the Tropical Cyclone Warning Signal No. 8, or

(3) Clause 8.4(2)(c)(iv) is amended by substituting with the following :-

(iv) inclement weather conditions and/or their consequential effects except as expressly provided in Clause 8.4(1A), 8.4(1B), 8.4(2)(b)(iA), 8.4(2)(b)(iB) or 8.4(2)(b)(ii).

SCC8.7 Use of the Site by Police and other disciplined services

SCC approved on 22.09.2015

[Guidance Note:

1. **This SCC is for use in building contract involving demolition of building where the area of the Site with the building to be demolished is suitable to be used by the Police or other disciplined services for their training within the first month of the Contractor taking possession of such area of the Site.**
2. **The building to be demolished is referring to domestic block, school block or similar standalone building but not minor building structure of RCP, covered walkway, pergola, pavilion and the like.**
3. **The inclusion of this SCC will provide an option for the Contract Manager to consider any request from the Police or other disciplined services for using such area of the Site for their training.**
4. **Specification clause PRE.B6.612 shall be used in conjunction with this SCC.**
5. **Should Clause SCC8.1 be adopted, the sub-clause numbers in this Clause SCC8.7 should be amended from (3) – (4) to (5) – (6) respectively and the clause reference "Clause 8.2(3)" in the last line of both Clauses SCC8.7(6)(a) and SCC8.7(6)(b) should be amended to "Clause 8.2(5)".]**

Clause 8.2 of the General Conditions of Contract is amended by adding the following:-

(3) The Contractor shall allow the Hong Kong Police Force and/or other disciplined services of the Government to use part(s) or area(s) of the Site in the manner and for the period(s) as stated in the Specification. The use of such part(s) or area(s) of the Site by the Hong Kong Police Force and/or other disciplined services of the Government shall not relieve the Contractor of any of his duties and obligations under the Contract.

(4) For the avoidance of doubt and without limiting the Contractor's obligations and responsibilities under the Contract –

(a) Clauses 5.12 and 5.33 shall apply to the Works within such part(s) or area(s) of the Site referred to in Clause 8.2(3), and

(b) Clauses 5.13 and 5.14 shall apply in respect of the Hong Kong Police Force and/or other disciplined services of the Government and of their property when they or their property are within the Site for the purpose of Clause 8.2(3).

SCC9 EXCISION AND SUSPENSION OF THE WORKS

SCC9.1 Works Subject to Excision

SCC approved on 28.04.2015

Clause 9.1 of the General Conditions of Contract is amended by substituting with the following:-

Where any part of the Works is specified in the Contract to be Works Subject to Excision, the Contractor shall have no right to carry out any such part of the Works unless and until a written instruction to proceed is issued by the Contract Manager. The Contract Manager's instruction to proceed shall be issued pursuant to this Clause 9.1 within the time period specified in the Contract. In the event that the Contract Manager has not issued any instruction pertaining to the Works Subject to Excision within the time period specified in the Contract, the Contractor shall, within 7 days from the expiry of such time period, write to the Contract Manager seeking the Contract Manager's direction. If the Contractor has not written to the Contract Manager within the said 7 day period or unless the Contract Manager directs to proceed within 14 days from the Contractor's written request for a direction, such Works Subject to Excision shall be deemed to be excised from the Works. The amount of such Works Subject to Excision excised from the Works shall be determined by the Surveyor in the same manner as a sum to be deducted from the Contract Sum in respect of a Variation in accordance with Clause 11.3, provided that any adjustment for deducting the prices of Preliminaries shall be in accordance with other provisions of the Contract.

SCC11 MEASUREMENT, VARIATIONS, VALUATIONS AND CLAIMS

SCC11.1 Bills of Quantities and measurement

Clause 11.1 of the General Conditions of Contract is amended by substituting with the following :-

(1) Except where any statement in the Bills of Quantities expressly specifies to the contrary, the Bills of Quantities shall be deemed to have been prepared and measurements shall be made according to the procedures set forth in the method of measurement stated in the Bills of Quantities.

(2) The quantities set out in the Bills of Quantities are estimated quantities and they are not to be taken as the actual and correct quantities of the work to be executed.

(3) Any error in description in or omission from the Bills of Quantities shall not vitiate the Contract nor release the Contractor from the execution of the whole or any part of the Works according to the Drawings and Specification or from any of his obligations or liabilities under the Contract. The Surveyor shall correct any such error or omission, shall determine the value of the work actually carried out in accordance with Clause 11.3 and shall take this into account in the calculation of the Final Contract Sum.

Provided that there shall be no rectification of any error, omission or wrong estimate in any description, quantity or rate inserted by the Contractor in the Bills of Quantities.

(4) (a) For the purpose of calculating the Final Contract Sum, the Surveyor shall ascertain and determine by measurement the quantity of work executed in accordance with the Contract. Subject to Clause 11.1(4)(b), such work shall be valued at the rates stated in the Bills of Quantities or if there are no appropriate rates in the Bills of Quantities then at other rates determined in accordance with the Contract.

(b) Should the actual quantity of work executed in respect of any item be substantially greater or less than that stated in the Bills of Quantities and if in the opinion of the Surveyor such increase or decrease of itself shall render the rate for such item unreasonable or inapplicable and subject to any preambles to the Bills of Quantities which provide otherwise, the Surveyor shall determine an appropriate increase or decrease of the rate for the item using the Bills of Quantities rate as the basis for such determination and shall notify the Contractor accordingly.

(5) When any part of the Works is required to be measured, the Surveyor shall inform the Contractor who shall forthwith attend or send a representative to assist the Surveyor in making such measurement on the Site and shall furnish all particulars required. Should the Contractor not attend or neglect or omit to send such representative then the measurement made or approved by the Surveyor shall be taken to be the correct measurement of such part of the Works.

(6) (a) When the Surveyor is required to furnish the Contractor with his measurement and valuation under the Contract, such measurement and valuation shall be provided progressively to the Contractor. Effect shall be given to such measurement and valuation in the calculation of the Final Contract Sum. The Surveyor shall provide the Contractor with a copy of the statement of final account which is a summary of all adjustments to be made to the Contract Sum within the Period of Final Measurement stated in the appendix to the Form of Tender which period, unless otherwise stated in the Contract, shall commence on the day following the date of completion stated in the certificate of completion issued under Clause 8.7. Where there is more than one certificate of completion issued under the Contract, the expression "certificate of completion" shall, for the purpose of this Clause 11.1(6)(a), mean the last of the certificates of completion issued under Clause 8.7.

(b) With respect to any measurement and valuation under Clause 11.1(6)(a) for provisional quantities, the Surveyor shall provide the Contractor with his determination for provisional quantities within the period as specified in the Contract after the commencement of the Period of Final Measurement.

SCC11.2 Schedule of rates (for part of the Works)

(1) Clause 11.1(5) of the General Conditions of Contract is amended by substituting with the following:-

(5) Where the Contract specifies that schedule of rates for a part of the Works are included in the Contract, the quality and quantity of the part of the Works the value of which is included in the Contract Sum shall be deemed to be those which are shown on the Drawings and/or described in the Specification. The Contractor shall submit a fully priced and detailed schedule of rates with approximate quantities showing the build-up of the Tender for the part of the Works. When any provisional quantity is included in the schedule of rates by the Employer the item shall be valued at the rate in the schedule of rates. Variations to such part of the Works shall be valued based on the rates included in the schedule of rates in accordance with Clause 11.3.

(2) The General Conditions of Contract shall be revised as follows:-

(a) Replace the word "or" between "Bills of Quantities" and "schedule of rates" in Clause 5.5 of the General Conditions of Contract with "and/or".

(b) Replace the word "or" between "Bills of Quantities" and "schedule of rates" in Clause 14.2(1)(b) of the General Conditions of Contract with "and/or".

SCC11.3 Contractor's quotation

(1) Prior to ordering a Variation, the Contract Manager may instruct the Contractor in writing to submit a lump sum quotation for such Variation specifically invoking this Clause SCC11.3 of the Special Conditions of Contract within 14 days of the date of receipt of such request, or within such other time as may be agreed between the Contract Manager and the Contractor. The Contractor shall state in the lump sum quotation:-

(a) the sums proposed to be added to or deducted from the Contract Sum:-

(i) as a result of the Variation as determined in accordance with the principles set out in Clause 11.3 of the General Conditions of Contract, and

(ii) in respect of any other Costs incurred or likely to be incurred because of the Variation, and

(b) an itemised breakdown of the pricing of the items adding up to the proposed sums mentioned in Clause SCC11.3(1)(a) of the Special Conditions of Contract, and

(c) the Contractor's reasoned estimate of the effect on the time for the completion of the Works or any Section, and

(d) such other information as necessary for the evaluation of the lump sum quotation by the Contract Manager and the Surveyor.

(2) Within 14 days from the date of receipt of a lump sum quotation, the Surveyor shall notify the Contract Manager in writing that either the adjustment to the Contract Sum in the lump sum quotation is agreed or disagreed. Within 7 days from the date of receipt of the Surveyor's notification, or such other time as may be agreed between the Contract Manager and the Contractor, the Contract Manager shall notify the Contractor in writing that either

the lump sum quotation is agreed, or disagreed, or that he wishes the Contractor to submit a revised lump sum quotation for the Variation.

(3) If the Contract Manager does not reply to a Contractor's lump sum quotation within the time allowed in Clause SCC11.3(2) of the Special Conditions of Contract, the Contractor shall notify the Contract Manager to this effect. No Contract Manager's default in replying to a Contractor's lump sum quotation shall be deemed to be an acceptance by the Contract Manager to such a Contractor's lump sum quotation.

(4) If the Contract Manager agrees with the Contractor's lump sum quotation, or the revised quotation under Clause SCC11.3(2) of the Special Conditions of Contract, the Contract Manager may order such Variation pursuant to Clause 11.2 of the General Conditions of Contract with the agreed adjustment to the Contract Sum and, if appropriate, an agreed extension of time stated in the Variation order. The Contract Sum shall then be adjusted and, if appropriate, an extension of time shall be granted in accordance with the agreement. Such agreed adjustment to the Contract Sum and agreed extension of time shall become final and binding between and upon the Employer and the Contractor.

For the avoidance of doubt, no separate Surveyor's determination of adjustment to the Contract Sum for the Variation is required if the adjustment to the Contract Sum has been agreed in accordance with this Clause SCC11.3(4) of the Special Conditions of Contract.

(5) Notwithstanding anything to the contrary in the Contract, any adjustment to the Contract Sum and any extension of time agreed pursuant to this Clause SCC11.3 of the Special Conditions of Contract shall be deemed to be in full compensation in respect of the relevant Variation. The agreed adjustment and extension of time shall not be changed because of any inaccuracy in the Contractor's estimate upon which the agreement is based.

(6) If the Contract Manager and the Contractor cannot reach agreement on the Contractor's lump sum quotation within the time allowed in Clause SCC11.3(2) of the Special Conditions of Contract, the Contract Manager may order such Variation in the absence of an agreement. In such event the Contractor shall comply with the Contract Manager's order and the time and cost effect of the Variation shall be assessed by the Contract Manager and the Surveyor respectively as if no instruction to the Contractor to submit a lump sum quotation pursuant to Clause SCC11.3(1) of the Special Conditions of Contract had been issued.

SCC11.4 Enhancement Works

SCC approved on 21.08.2014

[Guidance Notes:

1. **This SCC is for use in bundled contract that comprises building works and other work types (such as demolition works, foundation works and/or civil engineering works) which are to be carried out in separate Sections.**

2. **Fill in the blank with the designation(s) of the Section(s) in which the other work types (such as demolition works, foundation works and/or civil engineering works) are to be carried out, and delete "*" and the underline '_____'.]**

Clause 11.9(1) of the General Conditions of Contract is amended by adding the following as its second proviso:-

Provided further that no Enhancement Works shall be ordered by the Contract Manager to any part of Section(s) _____*.

SCC14 CERTIFICATES AND PAYMENTS

SCC14.1 Specialist Sub-contractor

Rev. 1 approved on 01.12.2022

[Guidance Note: Project team should consult SQS/CA Unit(s) for adoption of this SCC clause]

(1) Clause 14.1(1) of the General Conditions of Contract is amended by renumbering the Clauses 14.1(1)(b) and 14.1(1)(c) of the General Conditions of Contract as Clauses 14.1(1)(c) and 14.1(1)(d) respectively and adding the following as Clause 14.1(1)(b) of the General Conditions of Contract:-

(b) the estimated contract value of the work done by any Specialist Sub-contractor in accordance with the Contract up to the end of such period. Such estimated value shall be supported by a written statement by any Specialist Sub-contractor on the percentage of work confirmed to be done to date and a schedule of materials on the Site for inclusion in the permanent works made on the headed paper of the Specialist Sub-contractor concerned, and

(2) Clause 14.2(1) of the General Conditions of Contract is amended by renumbering the Clauses 14.2(1)(d) and 14.2(1)(e) of the General Conditions of Contract as 14.2(1)(e) and 14.2(1)(f) respectively and adding the following as Clause 14.2(1)(d) of the General Conditions of Contract:-

(d) the estimated sum payable in respect of any Specialist Sub-contractor provided always that such estimated sum shall not be paid unless supported by a written statement by the Specialist Sub-contractor concerned as specified in Clause 14.1(1)(b);

(3) Clause 14.2(1) of the General Conditions of Contract is further amended by substituting the starting paragraph of its second proviso with the following:

Provided further that the total estimated sum in respect of Clauses 14.2(1)(a) to 14.2(1)(f) shall be adjusted by the Surveyor to take into account:-

(4) Clause 14.2 of the General Conditions of Contract is further amended by adding the following:-

(8) Within 7 days of receiving payment from the Employer in accordance with Clause 14.2(1) and Clause 14.2(5) the Contractor shall submit to the Surveyor a declaration stating that the sum payable to the Specialist Sub-contractor under the terms of the Specialist Sub-contract has been paid. Such declaration should be supported by written acknowledgement of payment from the Specialist Sub-contractor made on headed paper of the Specialist Sub-contractor concerned.

(9) In the event of failure by the Contractor to submit the declaration in Clause 14.2(8), the Surveyor may, in writing, demand from the Contractor a written statement explaining the reason for failure to make such submission to the Surveyor within 14 days of the written demand.

(5) Further to Clause 3.2(4) of the General Conditions of Contract, the Contractor shall be responsible for the acts, defaults and neglects of any Specialist Sub-contractor or the agents, employees or workers of any Specialist Sub-contractor as fully as if they were the acts, defaults or neglects of the Contractor, his agents, employees or workers.

(6) The Contractor shall procure the attendance of the Specialist Sub-contractor at meetings with the Contract Manager in respect of discussions on technical matters and allow the Specialist Sub-contractor to discuss technical matters with the Contract Manager in his

presence from the notified date for commencement of the Works up to and including the date of issue of the maintenance certificate under Clause 14.3 of the General Conditions of Contract.

(7) Where the Contract specifies that certain work is to be executed by a Specialist Sub-contractor the Contractor shall enter into a sub-contract with the Specialist Sub-contractor using the Standard Form of Domestic Sub-contract (2008 Edition) published by the Hong Kong Construction Association (hereinafter referred to as the "Standard Form").

Provided that the Contractor shall incorporate the following into the Standard Form as shall be entered into with the Specialist Sub-contractor:-

(a) by way of a special condition of the sub-contract, Clause 15.7of the Standard Form is amended by substituting with the following:-

"Within seven (7) days of the Contractor's receipt of any payment under the Main Contract which is by way of a release of the retention monies, the Contractor shall pay the Sub-contractor such retention held under this Sub-Contract.", and

(b) percentage of retention monies to be ten per cent of any estimated sum payable in respect of the Standard Form until each of the totals of such retention monies reaches the limit specified in the Contract for each Specialist Sub-contractor which shall be inserted against item (d) of the "Third Schedule" of such Standard Form.

(8) Any payment by the Contractor to the Specialist Sub-contractor under the Clause 6.9 of the Standard Form shall not be funded or reimbursed by the Employer to the Contractor in any manner whatsoever under the terms of the Contract.

SCC14.2 Interim payments, retention money and interest

SCC approved on 01.12.2022

Clause 14.2(1) of the General Conditions of Contract is amended by substituting the second proviso with the following:-

Provided further that the total estimated sum in respect of Clauses 14.2(1)(a) to 14.2(1)(e) shall be adjusted by the Surveyor to take into account:-

(i) the retention of the percentage as specified in the Contract of all estimated sums payable (before any adjustment made in accordance with Paragraph (iii) of this second proviso) excepting any estimated sums payable in respect of Nominated Sub-contractors (the sum so retained shall be referred to in the Contract as "Retention Money Held in respect of the Contractor") until the sum retained hereunder reaches the limit as specified in the Contract, and

(ii) the retention of the percentage of five percent of any estimated sum payable in respect of any Nominated Sub-contractor (before any adjustment made in accordance with Paragraph (iv) of this second proviso) (the sum so retained shall be referred to in the Contract as "Retention Money Held in respect of the Nominated Sub-contractor") until the total of any such retention reaches the limit as stated in the respective Nominated Sub-contract, and

(iii) any adjustment to be made for contract price fluctuations in accordance with Clause 20.2, if applicable, and

(iv) any adjustment to be made to the sum payable to any Nominated Sub-contractor for price fluctuations as may be provided for in the Contract, if applicable.

SCC15 REMEDIES AND POWERS

SCC15.1 Termination of the Contractor's employment in the interest of national security

SCC approved on 11.10.2022

Clause 15.1 of the General Conditions of Contract is amended as follows:-

(1) Clause 15.1(1) is amended by inserting "Without prejudice to any other rights or remedies that the Employer may have under the Contract or at law, if" and deleting the word "If" at the beginning of Clause 15.1(1).

(2) Clause 15.1 is amended by adding the following as Clause 15.1(1A) after Clause 15.1(1):-

(1A) Notwithstanding anything to the contrary in the Contract, if the Contractor has engaged or is engaging in any act or activity that may or is likely to constitute or cause the occurrence of an offence endangering national security or which would otherwise be contrary to the interest of national security, or the continued engagement of the Contractor or the continued performance of the Contract is contrary to the interest of national security, the Employer may after giving notice in writing to the Contractor immediately enter upon the Site and the Works and expel the Contractor therefrom without thereby avoiding the Contract or releasing the Contractor from any of his obligations or liabilities under the Contract or affecting the rights and powers conferred on the Employer or the Contract Manager by the Contract and the Employer may complete the Works or may employ any other contractor to complete the Works and the Employer or such other contractor may use for such completion so much of the Constructional Plant, temporary buildings and materials which become the property of the Employer under Clauses 13.1 and 13.2 as the Employer may think proper and the Employer may at any time sell any of the said Constructional Plant, temporary buildings and unused materials and apply the proceeds of sale in or towards the satisfaction of any sum due or which may become due to the Employer from the Contractor under the Contract.

(3) Clause 15.1 is further amended by adding the following as Clause 15.1(3A) after Clause 15.1(3):-

(3A) By a further notice in writing within 28 days of the notice referred to in Clause 15.1(1A), the Employer may require the Contractor to assign to the Employer and if so required the Contractor shall forthwith assign to the Employer the benefit of any agreement for the supply of any materials and/or for the execution of any work for the purposes of the Contract which the Contractor may have entered into.

(4) Clause 15.1(4)(b) is amended by substituting with the following:-

(b) The Surveyor shall certify the difference between:-

(i) such sum as would have been due to the Contractor if he had duly completed the Works together with any proceeds of sale under Clause 15.1(1) or 15.1(1A), and

(ii) the sum of the costs of completing the Works (whether or not the Works are completed under a separate contract), damages for delay (if any) to the completion of the Works and all other expenses reasonably incurred by the Employer in connection with or arising out of the termination under Clause 15.1(1) or 15.1(1A).

SCC17 AVOIDANCE AND RESOLUTION OF DISPUTES

SCC17.1 Avoidance and resolution of disputes

SCC approved on 06.01.2015

Clause 17.1(17) of the General Conditions of Contract is amended by substituting with the following:-

(17) The reference to arbitration under Clause 17.1(15) or 17.1(16) shall be in accordance with and subject to the following:-

(a) All the provisions in Schedule 2 to the Arbitration Ordinance (Cap. 609) shall apply to any arbitration instituted in accordance with Clause 17.1(15) or 17.1(16).

(b) Subject to Clauses 17.1(17)(c) and 17.1(17)(d), the Domestic Arbitration Rules (2014) of the Hong Kong International Arbitration Centre (the "Arbitration Rules") or any modification thereof for the time being in force shall apply to any arbitration instituted in accordance with Clause 17.1(15) or 17.1(16).

(c) Notwithstanding any provision of the Arbitration Rules, the place of meetings and hearings in the arbitration shall be Hong Kong unless the parties otherwise agree.

(d) Article 20.1 of the Arbitration Rules shall be deleted and replaced by the following:-

"20.1(a) The arbitration proceedings are private and confidential between the parties and the arbitrator. Subject to the provisions of section 18 of the Ordinance and these Rules, no information relating to the arbitration shall be disclosed by any person without the written consent of each and every party to the arbitration. Disclosures are permissible where disclosures:-

(i) are necessary for implementation or enforcement, or

(ii) are required by the parties' auditors or for some other legitimate business reasons, or

(iii) are required by any order of the courts of Hong Kong or other judicial tribunal, or

(iv) which are necessary for the making of claims against any third party or to defend a claim brought by any third party.

20.1(b) Notwithstanding Article 20.1(a) and subject to the following provisions, the Hong Kong Housing Authority of the Hong Kong Special Administrative Region (the "Housing Authority") may disclose the outline of any dispute with the other party and the outcome of the arbitration to the Public Accounts Committee of the Legislative Council upon its request. Before disclosures are made to the said Committee, the Housing Authority shall inform the other party. Disclosures shall not be made to the said Committee before expiry of the first 6 months from the date of the outcome of the arbitration without the written consent of the other party but such consent shall not be unreasonably withheld. The other party shall be deemed to have given his consent to disclosures on the expiry of the first 6 months from the date of the outcome of the arbitration. The other party may, if he considers it necessary to protect the sensitive nature of certain information relating to him, request the Housing Authority to disclose such specified information to the said Committee strictly on a confidential basis. If the Housing Authority considers that there are legitimate grounds to accede to the other party's request, the Housing Authority shall convey the request to the said Committee for its consideration."

SCC18 NOTICES

SCC18.1 Service of notices

Clause 18.1 of the General Conditions of Contract is amended by substituting with the following:-

(1) Save to the extent of the application of HOMES as provided for in the Contract, any notice to be given to the Contractor under the provisions of the Contract shall be in writing and served:-

(a) personally, or

(b) by post addressed to the Contractor's last known place of business or, in the event of the Contractor being

(i) a firm, to the last known place of residence of the owner or any of the partners thereof, or

(ii) a company, to the registered office in Hong Kong of such company, or

(c) by leaving a copy at the Contractor's last known place of business or, in the event of the Contractor being

(i) a firm, at the last known place of residence of the owner or any of the partners thereof, or

(ii) a company, at the registered office in Hong Kong of such company, or

(d) by posting a copy in a conspicuous position upon the Site.

(2) Save to the extent of the application of HOMES as provided for in the Contract, any notice to be given to the Contract Manager or to the Surveyor under the provisions of the Contract shall be served by post to or leaving such notice at the office of the Contract Manager.

(3) Save to the extent of the application of HOMES as provided for in the Contract, any notice to be given to the Employer, as distinct from the Contract Manager, under the provisions of the Contract shall be served by post to or leaving such notice at the office of the Director of Housing. At the same time such notice shall be copied to the Contract Manager and the Surveyor and served on them in like manner to any other notice to be given to the Contract Manager or to the Surveyor.

(4) Save to the extent of the application of HOMES as provided for in the Contract, notices may be served by facsimile only if the recipient has previously notified the other party and the Contract Manager in writing that it is prepared to accept service of notices in that manner. It shall in any event be a condition of valid service by facsimile that the hard copy is subsequently sent forthwith to the recipient in accordance with Clauses 18.1(1), 18.1(2) or 18.1(3).

SCC20 CHANGE IN LAW AND FLUCTUATIONS

SCC20.1 Fluctuation in the cost of labour and materials for Nominated Sub-contractor for electrical installation

Rev. 1 approved on 13.01.2022

(1) Notwithstanding the provisions of Clause 20.2 of the General Conditions of Contract, the sum payable in any interim or final payment certificate certified by the Surveyor as being due to the Nominated Sub-contractor for electrical installation (other than sums due under this Clause SCC20.1 of the Special Conditions of Contract) shall be increased or decreased in accordance with the provisions of this Clause SCC20.1 of the Special Conditions of Contract if there shall be any changes between the Current Index and the Base Index Figures applicable to this Clause SCC20.1 of the Special Conditions of Contract.

The net total of such increases or decreases shall be given effect to in determining the "Final Sub-contract Sum" as referred to in the Nominated Sub-contract for electrical installation.

(2) For the purpose of this Clause SCC20.1 of the Special Conditions of Contract, the increases or decreases in the sums otherwise payable in an interim or final payment certificate pursuant to Clause 20.1(1) of the Special Conditions of Contract shall be the net total of the labour and material fluctuations calculated from the following formulae:-

Labour Fluctuation (LF)

$$LF = LC \times EV \times \frac{LIc - LIb}{LIb}$$

Material Fluctuation (MF)

$$MF = MC \times EV \times \frac{MIc - MIb}{MIb}$$

where

(a) LC (Labour Content) shall be 25%

(b) MC (Material Content) shall be 15%

(c) EV (Effective Value in respect of the Nominated Sub-contract Works for electrical installation comprised in the Works or a Section or a part thereof as the case may be) shall be the difference between:-

(i) the sum, exclusive of any increases or decreases made in accordance with this Clause SCC20.1 of the Special Conditions of Contract, which in the opinion of the Surveyor is due to the Nominated Sub-contractor for electrical installation under Clause 10.1 of the General Conditions of Sub-contract for electrical installation, before deducting retention and previous payments on account, less all sums for items based on actual cost or current prices, and

(ii) the sum calculated in the same method as Clause SCC20.1(2)(c)(i) above of the Special Conditions of Contract and included in the last preceding interim payment certificate issued by the Surveyor.

Provided that in the case of the payment certificate containing the first payment to the Nominated Sub-contractor for electrical installation, the Effective Value shall be the sum calculated in accordance with Clause SCC20.1(2)(c)(i) above of the Special Conditions of Contract only.

(d) LIb (Base Labour Index) shall be the Index Number of the "Composite labour wages for building contracts" listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" published monthly by the Census and Statistics Department of the Government (hereinafter referred to as the "C&SD") and applicable to the date 42 days prior to the date for the return of tender for the Nominated Sub-contract for electrical installation.

(e) LIc (Current Labour Index) shall be the Index Number of the "Composite labour wages for building contracts" listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" published monthly by the C&SD and applicable to the date 42 days prior to:-

(i) in the event that the Works are not phased for completion in Sections in the Contract,

(a) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Works, or

(b) the date of completion of the Works certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(c) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest.

Provided that in the event that any part of the Works is certified complete pursuant to Clause 8.7 of the General Conditions of Contract before the remainder of the Works is certified complete pursuant to Clause 8.7 of the General Conditions of Contract and the value of the part of the Nominated Sub-contract Works for electrical installation comprised in such part of the Works is included in such payment certificate, the Current Labour Index to be applied in respect of such part of the Nominated Sub-contract Works for electrical installation shall be the Index Number applicable to the date 42 days prior to:-

(A) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Works, or

(B) the date of completion of such part of the Works certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(C) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest, and the Current Labour Index to be applied in respect of the remainder of the Nominated Sub-contract Works for electrical installation shall be determined in the same way as that applicable to the part of the Nominated Sub-contract Works for electrical installation specified in Clause 20.1(2)(e)(i) of the Special Conditions of Contract save and except that the words "the Works" in Clause 20.1(2)(e)(i)(b) of the Special Conditions of Contract shall be "the remainder of the Works" and the proviso to Clause 20.1(2)(e)(i) of the Special Conditions of Contract shall not apply.

(ii) in the event that the Works are phased for completion in Sections in the Contract,

(a) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Section, or

(b) the date of completion of the Section certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(c) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest.

Provided that in the event that any part of the Section is certified complete pursuant to Clause 8.7 of the General Conditions of Contract before the remainder of the Section is certified complete pursuant to Clause 8.7 of the General Conditions of Contract and the value of the part of the Nominated Sub-contract Works comprised in such part of the Section is included in such payment certificate, the Current Labour Index to be applied in respect of such part of the Nominated Sub-contract Works shall be the Index Number applicable to the date 42 days prior to:-

(A) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Section, or

(B) the date of completion of such part of the Section certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(C) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest, and the Current Labour Index to be applied in respect of the part of the Nominated Sub-contract Works in the remainder of the Section shall be determined in the same way as that applicable to the Section specified in Clause 20.1(2)(e)(ii) of the Special Conditions of Contract save and except that the words "the Section" in Clause 20.1(2)(e)(ii)(b) of the Special Conditions of Contract shall be "the remainder of the Section" and the proviso to Clause 20.1(2)(e)(ii) of the Special Conditions of Contract shall not apply.

(f) MIb (Base Material Index) shall be the "Cash Seller and Settlement" price in Hong Kong dollar equivalent for "Copper Grade A" from the London Metal Exchange (LME) and applicable to the date 42 days prior to the date for the return of tender for the Nominated Sub-contract for electrical installation.

(g) MIc (Current Material Index) shall be the "Cash Seller and Settlement" price in Hong Kong dollar equivalent for Copper Grade A from the LME and applicable to the date 42 days prior to the date which is six calendar months after the date for the return of tender for the Nominated Sub-contract for electrical installation.

Provided that if the copper prices and/or the currency exchange rates forming the base and/or current material indices for material fluctuation being unavailable due to holiday, then the copper prices and/or the currency exchange rates quoted on the last working date prior to the holiday shall be used in calculating the base and/or current material indices.

(3) In the event that all the appropriate current indices have not been published or available prior to the due date for any payment certificate, the increase or decrease in the sum payable to the Nominated Sub-contractor for electrical installation under this Clause SCC20.1 of the Special Conditions of Contract in respect of that certificate shall be provisionally calculated and added to or deducted from the sum certified as due to the Nominated Sub-contractor for electrical installation by the Surveyor using the latest published or available current indices and shall be corrected in the next Surveyor's certificate following the publishing or availability of the relevant current indices.

(4) For the purpose of this Clause SCC20.1(4) of the Special Conditions of Contract, "Index Figure" shall mean any Index Number appropriate to Clause SCC20.1(2)(e) of the Special Conditions of Contract. In the event of any change(s) to the base period, composition, compilation method or availability of the Index Figure or any statistical figures used for compiling an Index Figure, as adopted by C&SD in the published Index Figure on or after the date for the return of tender for the Nominated Sub-contract for electrical installation, and

(a) where a conversion factor and/or the associated conversion method for the change in the Index Figure is available from C&SD, the relevant current Index Figure upon and after the discontinuation of the Index Figure with the original base period, composition and/or compilation method shall be calculated by using such conversion factor on the corresponding Index Figure;

(b) where the Index Figure remains available but a conversion factor and/or the associated conversion method is not available from C&SD, the relevant current Index Figure upon and after the discontinuation of the Index Figure with the original base period, composition and/or compilation method shall be calculated by multiplying the new Index Figure by a contract conversion factor which is a fraction, the numerator of which is the sum of the Index Figure with the original base period, composition and/or compilation method over the 12 months immediately before the first reference month whereby the Index Figure is discontinued (hereinafter referred to as the "month of the discontinuation"), and the denominator of which is the sum of the Index Figure with the new base period, composition and/or compilation method over the 12 months immediately before the month of the discontinuation

(i.e. $Contract\ Conversion\ Factor\ C = \frac{\mathrm{OIF}_{k-1} + \mathrm{OIF}_{k-2} + \cdots + \mathrm{OIF}_{k-12}}{\mathrm{NIF}_{k-1} + \mathrm{NIF}_{k-2} + \cdots + \mathrm{NIF}_{k-12}}$

where

k is the month of the discontinuation of the old Index Figure

NIF_{k-x} is the new Index Figure applicable for x month(s) before month k

OIF_{k-x} is the old Index Figure applicable for x month(s) before month k).

SCC20.2 Fluctuation in the cost of labour and materials for Nominated Sub-contractor for fire services installation

Rev. 1 approved on 13.01.2022

(1) Notwithstanding the provisions of Clause 20.2 of the General Conditions of Contract, the sum payable in any interim or final payment certificate certified by the Surveyor as being due to the Nominated Sub-contractor for fire services installation (other than sums due under this Clause SCC20.2 of the Special Conditions of Contract) shall be increased or decreased in accordance with the provisions of this Clause SCC20.2 of the Special Conditions of Contract if there shall be any changes between the Current Index and the Base Index Figures applicable to this Clause SCC20.2 of the Special Conditions of Contract.

The net total of such increases or decreases shall be given effect to in determining the "Final Sub-contract Sum" as referred to in the Nominated Sub-contract for fire services installation.

(2) For the purpose of this Clause SCC20.2 of the Special Conditions of Contract, the increases or decreases in the sums otherwise payable in an interim or final payment certificate pursuant to Clause SCC20.2(1) of the Special Conditions of Contract shall be the net total of the labour and material fluctuations calculated from the following formulae:-

Labour Fluctuation (LF)

$$LF = LC \times EV \times \frac{LIc - LIb}{LIb}$$

Material Fluctuation (MF)

$$MF = MC \times EV \times \frac{MIc - MIb}{MIb}$$

where

(a) LC (Labour Content) shall be 25%

(b) MC (Material Content) shall be 25%

(c) EV (Effective Value in respect of the Nominated Sub-contract Works for fire services installation comprised in the Works or a Section or a part thereof as the case may be) shall be the difference between:-

(i) the sum, exclusive of any increases or decreases made in accordance with this Clause SCC20.2 of the Special Conditions of Contract, which in the opinion of the Surveyor is due to the Nominated Sub-contractor for fire services installation under Clause 10.1 of the General Conditions of Sub-contract for fire services installation, before deducting retention and before deducting previous payments on account, less all sums for items based on actual cost or current prices, and

(ii) the sum calculated in accordance with Clause SCC20.2(2)(c)(i) above of the Special Conditions of Contract and included in the last preceding interim payment certificate issued by the Surveyor.

Provided that in the case of the payment certificate containing the first payment to the Nominated Sub-contractor for fire services installation, the Effective Value shall be the sum calculated in accordance with Clause SCC20.2(2)(c)(i) above of the Special Conditions of Contract.

(d) LIb (Base Labour Index) shall be the Index Number of the "Composite labour wages for building contracts" listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" published monthly by the Census and Statistics Department of the Government (hereinafter referred to as the "C&SD") and applicable to the date 42 days prior to the date for the return of tender for the Nominated Sub-contract for fire services installation.

(e) LIc (Current Labour Index) shall be the Index Number of the "Composite labour wages for building contracts" listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" published monthly by the C&SD and applicable to the date 42 days prior to:-

(i) in the event that the Works are not phased for completion in Sections in the Contract,

(a) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Works, or

(b) the date of completion of the Works certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(c) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest.

Provided that in the event that any part of the Works is certified complete pursuant to Clause 8.7 of the General Conditions of Contract before the remainder of the Works is certified complete pursuant to Clause 8.7 of the General Conditions of Contract and the value of the part of the Nominated Sub-contract Works for fire services installation comprised in such part of the Works is included in such payment certificate, the Current Labour Index to be applied in respect of such part of the Nominated Sub-contract Works for fire services installation shall be the Index Number applicable to the date 42 days prior to:-

(A) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Works, or

(B) the date of completion of such part of the Works certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(C) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest, and the Current Labour Index to be applied in respect of the remainder of the Nominated Sub-contract Works for fire services installation shall be determined in the same way as that applicable to the part of the Nominated Sub-contract Works for fire services installation specified in this Clause SCC20.2(2)(e)(i) of the Special Conditions of Contract save and except that the words "the Works" in Clause SCC20.2(2)(e)(i)(b) of the Special Conditions of Contract shall be "the remainder of the Works" and the proviso to this Clause SCC20.2(2)(e)(i) of the Special Conditions of Contract shall not apply.

(ii) in the event that the Works are phased for completion in Sections in the Contract,

(a) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Section, or

(b) the date of completion of the Section certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(c) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest.

Provided that in the event that any part of the Section is certified complete pursuant to Clause 8.7 of the General Conditions of Contract before the remainder of the Section is certified complete pursuant to Clause 8.7 of the General Conditions of Contract and the value of the part of the Nominated Sub-contract Works for fire services installation is included in such payment certificate, the Current Labour Index to be applied in respect of such part of the Nominated Sub-contract Works for fire services installation shall be the Index Number applicable to the date 42 days prior to:-

(A) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Section, or

(B) the date of completion of such part of the Section certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(C) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest, and the Current Labour Index to be applied in respect of the part of the Nominated Sub-contract Works for fire services installation in the remainder of the Section shall be determined in the same way as that applicable to the Section specified in this Clause SCC20.2(2)(e)(ii) of the Special Conditions of Contract save and except that the words "the Section" in this Clause SCC20.2(2)(e)(ii)(b) of the Special Conditions of Contract shall be "the remainder of the Section" and the proviso to Clause SCC20.2(2)(e)(ii) of the Special Conditions of Contract shall not apply.

(f) MIb (Base Material Index) shall be the Index Number of "GMS pipes" listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" published monthly by the C&SD and applicable to the date 42 days prior to the date for the return of tender for the Nominated Sub-contract for fire services installation.

(g) MIc (Current Material Index) shall be the Index Number of "GMS pipes" listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" published monthly by the C&SD and applicable to the date 42 days prior to the date which is twelve calendar months after the date for the return of tender for the Nominated Sub-contract for fire services installation.

(3) In the event that all the appropriate current indices have not been published or available prior to the due date for any payment certificate, the increase or decrease in the sum payable to the Nominated Sub-contractor for fire services installation under this Clause SCC20.2 of the Special Conditions of Contract in respect of that certificate shall be provisionally calculated and added to or deducted from the sum certified as due to the Nominated Sub-contractor for fire services installation by the Surveyor using the latest published or available current indices and shall be corrected in the next Surveyor's certificate following the publishing or availability of the relevant current indices.

(4) For the purpose of this Clause SCC20.2(4) of the Special Conditions of Contract, "Index Figure" shall mean any Index Number appropriate to Clause SCC20.2(2)(e) of the Special Conditions of Contract. In the event of any change(s) to the base period, composition, compilation method or availability of the Index Figure or any statistical figures used for compiling an Index Figure, as adopted by C&SD in the published Index Figure on or after the date for the return of tender for the Nominated Sub-contract for fire services installation, and

(a) where a conversion factor and/or the associated conversion method for the change in the Index Figure is available from C&SD, the relevant current Index Figure upon and after the discontinuation of the Index Figure with the original base period, composition and/or compilation method shall be calculated by using such conversion factor on the corresponding Index Figure;

(b) where the Index Figure remains available but a conversion factor and/or the associated conversion method is not available from C&SD, the relevant current Index Figure upon and after the discontinuation of the Index Figure with the original base period, composition and/or compilation method shall be calculated by multiplying the new Index Figure by a contract conversion factor which is a fraction, the numerator of which is the sum of the Index Figure with the original base period, composition and/or compilation method over the 12 months immediately before the first reference month whereby the Index Figure is discontinued (hereinafter referred to as the "month of the discontinuation"), and the denominator of which is the sum of the Index Figure with the new base period, composition and/or compilation method over the 12 months immediately before the month of the discontinuation

(i.e. $Contract\ Conversion\ Factor\ C = \frac{\mathrm{OIF}_{k-1} + \mathrm{OIF}_{k-2} + \cdots + \mathrm{OIF}_{k-12}}{\mathrm{NIF}_{k-1} + \mathrm{NIF}_{k-2} + \cdots + \mathrm{NIF}_{k-12}}$

where

k is the month of the discontinuation of the old Index Figure

NIF_{k-x} is the new Index Figure applicable for x month(s) before month k

OIF_{k-x} is the old Index Figure applicable for x month(s) before month k).

SCC20.3 Fluctuation in the cost of labour and materials for Nominated Sub-contractor for fire services and water pump installation

Rev. 1 approved on 13.01.2022

(1) Notwithstanding the provisions of Clause 20.2 of the General Conditions of Contract, the sum payable in any interim or final payment certificate certified by the Surveyor as being due to the Nominated Sub-contractor for fire services and water pump installation (other than sums due under this Clause SCC20.3 of the Special Conditions of Contract) shall be increased or decreased in accordance with the provisions of this Clause SCC20.3 of the Special Conditions of Contract if there shall be any changes between the Current Index and the Base Index Figures applicable to this Clause SCC20.3 of the Special Conditions of Contract.

The net total of such increases or decreases shall be given effect to in determining the "Final Sub-contract Sum" as referred to in the Nominated Sub-contract for fire services and water pump installation.

(2) For the purpose of this Clause SCC20.3 of the Special Conditions of Contract, the increases or decreases in the sums otherwise payable in an interim or final payment certificate pursuant to Clause SCC20.3(1) of the Special Conditions of Contract shall be the net total of the labour and material fluctuations calculated from the following formulae:-

Labour Fluctuation (LF)

$$LF = LC \times EV \times \frac{LIc - LIb}{LIb}$$

Material Fluctuation (MF)

$$MF = MC \times EV \times \frac{MIc - MIb}{MIb}$$

where

(a) LC (Labour Content) shall be 25%.

(b) MC (Material Content) shall be 25%.

(c) EV (Effective Value in respect of the Nominated Sub-contract Works for fire services and water pump installation comprised in the Works or a Section or a part thereof as the case may be) shall be the difference between:-

(i) the sum, exclusive of any increases or decreases made in accordance with this Clause SCC20.3 of the Special Conditions of Contract, which in the opinion of the Surveyor is due to the Nominated Sub-contractor for fire services and water pump installation under Clause 10.1 of the General Conditions of Sub-contract for fire services and water pump installation, before deducting retention and before deducting previous payments on account, less all sums for items based on actual cost or current prices, and

(ii) the sum calculated in accordance with Clause SCC20.3(2)(c)(i) above of the Special Conditions of Contract and included in the last preceding interim payment certificate issued by the Surveyor.

Provided that in the case of the payment certificate containing the first payment to the Nominated Sub-contractor for fire services and water pump installation, the Effective Value shall be the sum calculated in accordance with Clause SCC20.3(2)(c)(i) above of the Special Conditions of Contract.

(d) LIb (Base Labour Index) shall be the Index Number of the "Composite labour wages for building contracts" listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" published monthly by the Census and Statistics Department of the Government (hereinafter referred to as the "C&SD") and applicable to the date 42 days prior to the date for the return of tender for the Nominated Sub-contract for fire services and water pump installation.

(e) LIc (Current Labour Index) shall be the Index Number of the "Composite labour wages for building contracts" listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" published monthly by the C&SD and applicable to the date 42 days prior to:-

(i) in the event that the Works are not phased for completion in Sections in the Contract,

(a) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Works, or

(b) the date of completion of the Works certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(c) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest.

Provided that in the event that any part of the Works is certified complete pursuant to Clause 8.7 of the General Conditions of Contract before the remainder of the Works is certified complete pursuant to Clause 8.7 of the General Conditions of Contract and the value of the part of the Nominated Sub-contract Works for fire services and water pump installation comprised in such part of the Works is included in such payment certificate, the Current Labour Index to be applied in respect of such part of the Nominated Sub-contract Works for fire services and water pump installation shall be the Index Number applicable to the date 42 days prior to:-

(A) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Works, or

(B) the date of completion of such part of the Works certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(C) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest, and the Current Labour Index to be applied in respect of the remainder of the Nominated Sub-contract Works for fire services and water pump installation shall be determined in the same way as that applicable to the part of the Nominated Sub-contract Works for fire services and water pump installation specified in Clause SCC20.3(2)(e)(i) of the Special Conditions of Contract save and except that the words "the

Works" in Clause SCC20.3(2)(e)(i)(b) of the Special Conditions of Contract shall be "the remainder of the Works" and the proviso to Clause SCC20.3(2)(e)(i) of the Special Conditions of Contract shall not apply.

(ii) in the event that the Works are phased for completion in Sections in the Contract,

(a) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Section, or

(b) the date of completion of the Section certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(c) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest.

Provided that in the event that any part of the Section is certified complete pursuant to Clause 8.7 of the General Conditions of Contract before the remainder of the Section is certified complete pursuant to Clause 8.7 of the General Conditions of Contract and the value of the part of the Nominated Sub-contract Works for fire services and water pump installation comprised in such part of the Section is included in such payment certificate, the Current Labour Index to be applied in respect of such part of the Nominated Sub-contract Works for fire services and water pump installation shall be the Index Number applicable to the date 42 days prior to:-

(A) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Section, or

(B) the date of completion of such part of the Section certified pursuant to Clause 8.7 of the General Conditions of Contract, or

(C) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest, and the Current Labour Index to be applied in respect of the part of the Nominated Sub-contract Works for fire services and water pump installation in the remainder of the Section shall be determined in the same way as that applicable to the Section specified in Clause SCC20.3(2)(e)(ii) of the Special Conditions of Contract save and except that the words "the Section" in Clause SCC20.3(2)(e)(ii)(b) of the Special Conditions of Contract shall be "the remainder of the Section" and the proviso to Clause SCC20.3(2)(e)(ii) of the Special Conditions of Contract shall not apply.

(f) MIb (Base Material Index) shall be the Index Number of "GMS pipes" listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" published monthly by the C&SD and applicable to the date 42 days prior to the date for the return of tender for the Nominated Sub-contract for fire services and water pump installation.

(g) MIc (Current Material Index) shall be the Index Number of "GMS pipes" listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" published monthly by the C&SD and applicable to the date 42 days prior to the date which is twelve calendar months after the date for the return of tender for the Nominated Sub-contract for fire services and water pump installation.

(3) In the event that if all the appropriate current indices have not been published or available prior to the due date for any payment certificate, the increase or decrease in the sum payable to the Nominated Sub-contractor for fire services and water pump installation under this Clause SCC20.3 of the Special Conditions of Contract in respect of that certificate shall be provisionally calculated and added to or deducted from the sum certified as due to the Nominated Sub-contractor for fire services and water pump installation by the Surveyor using the latest published or available current indices and shall be corrected in the next Surveyor's certificate following the publishing or availability of the relevant current indices.

(4) For the purpose of this Clause SCC20.3(4) of the Special Conditions of Contract, "Index Figure" shall mean any Index Number appropriate to Clause SCC20.3(2)(e) of the Special Conditions of Contract. In the event of any change(s) to the base period, composition, compilation method or availability of the Index Figure or any statistical figures used for compiling an Index Figure, as adopted by C&SD in the published Index Figure on or after the date for the return of tender for the Nominated Sub-contract for fire services and water pump installation, and

(a) where a conversion factor and/or the associated conversion method for the change in the Index Figure is available from C&SD, the relevant current Index Figure upon and after the discontinuation of the Index Figure with the original base period, composition and/or compilation method shall be calculated by using such conversion factor on the corresponding Index Figure;

(b) where the Index Figure remains available but a conversion factor and/or the associated conversion method is not available from C&SD, the relevant current Index Figure upon and after the discontinuation of the Index Figure with the original base period, composition and/or compilation method shall be calculated by multiplying the new Index Figure by a contract conversion factor which is a fraction, the numerator of which is the sum of the Index Figure with the original base period, composition and/or compilation method over the 12 months immediately before the first reference month whereby the Index Figure is discontinued (hereinafter referred to as the "month of the discontinuation"), and the denominator of which is the sum of the Index Figure with the new base period, composition and/or compilation method over the 12 months immediately before the month of the discontinuation

(i.e. $Contract\ Conversion\ Factor\ C = \frac{\mathrm{OIF}_{k-1} + \mathrm{OIF}_{k-2} + \cdots + \mathrm{OIF}_{k-12}}{\mathrm{NIF}_{k-1} + \mathrm{NIF}_{k-2} + \cdots + \mathrm{NIF}_{k-12}}$

where

k is the month of the discontinuation of the old Index Figure

NIF_{k-x} is the new Index Figure applicable for x month(s) before month k

OIF_{k-x} is the old Index Figure applicable for x month(s) before month k).

SCC20.4 Contract price fluctuations

SCC approved on 13.01.2022

Clause 20.2 of the General Conditions of Contract is amended by substituting with the following :-

(1) The sum certified by the Surveyor in any interim or final payment certificate as being due (other than sums due under this Clause 20.2) shall be increased or decreased in accordance with the provisions of this Clause 20.2 if there shall be any changes in the Index Figures listed in the "Index Numbers of the Costs of Labour and Materials used in Public Sector Construction Projects (April 2021 = 100)" compiled by the Census and Statistics Department of the Government (hereinafter referred to as the "C&SD") and applicable to those items included in the "Schedule of Proportions".

(2) The net total of such increases or decreases shall be given effect to in determining the Final Contract Sum.

(3) For the purpose of this Clause 20.2:-

(a) "Index Figure" shall mean any Index Number appropriate to Clause 20.2(1).

(b) "Base Index Figure" shall mean the appropriate Index Figure applicable to the date 42 days prior to the Tender Closing Date.

(c) "Current Index Figure" shall mean the appropriate Index Figure to be applied in respect of the Works or any Section in any interim or final payment certificate by the Surveyor and shall be the appropriate Index Figure applicable to the date 42 days prior to:-

(i) in the event that the Works are not phased for completion in Sections in the Contract

(a) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Works, or

(b) the date of completion of the Works certified pursuant to Clause 8.7, or

(c) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest.

Provided that in the event that any work forming part of the Works is certified complete pursuant to Clause 8.7 before the remainder of the Works is certified complete pursuant to Clause 8.7 and the value of such work is included in such payment certificate, the Current Index Figure to be applied in respect of such work shall be the Index Figure applicable to the date 42 days prior to:-

(A) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Works, or

(B) the date of completion of such work certified pursuant to Clause 8.7, or

(C) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest, and the Current Index Figure to be applied in respect of the remainder of the Works shall be determined in the same way as that applicable to the Works specified in Clause 20.2(3)(c)(i) save and except that the words "the Works" in Clause 20.2(3)(c)(i)(b) shall be "the remainder of the Works" and the proviso to Clause 20.2(3)(c)(i) shall not apply.

(ii) in the event that the Works are phased for completion in Sections in the Contract

(a) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Section, or

(b) the date of completion of the Section certified pursuant to Clause 8.7, or

(c) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest.

Provided that in the event that any work forming part of the Section is certified complete pursuant to Clause 8.7 before the remainder of the Section is certified complete pursuant to Clause 8.7 and the value of such work is included in such payment certificate, the Current Index Figure to be applied in respect of such work shall be the Index Figure applicable to the date 42 days prior to:-

(A) the due date, but in the event of the time for completion having been extended, then the extended date, for completion of the Section, or

(B) the date of completion of such work certified pursuant to Clause 8.7, or

(C) the last day of the period to which the Surveyor's certificate relates,

whichever is the earliest, and the Current Index Figure to be applied in respect of the remainder of the Section shall be determined in the same way as that applicable to the Section specified in Clause 20.2(3)(c)(ii) save and except that the words "the Section" in Clause 20.2(3)(c)(ii)(b) shall be "the remainder of the Section" and the

proviso to Clause 20.2(3)(c)(ii) shall not apply.

(d) The "Effective Value" in respect of the Works or any Section or any part thereof shall be the difference between:-

(i) the sum, exclusive of any increases or decreases made in accordance with this Clause 20.2, which in the opinion of the Surveyor is due to the Contractor under Clause 14.2, before deducting retention and before deducting previous payments on account, less all sums in respect of Nominated Sub-contractors including profit thereon and items and portions of items based on actual cost or current prices; and

(ii) the sum calculated in accordance with Clause 20.2(3)(d)(i) and included in the last preceding interim payment certificate issued by the Surveyor.

Provided that in the case of the first Surveyor's certificate the Effective Value shall be the sum calculated in accordance with Clause 20.2(3)(d)(i).

(4) The increase or decrease in the sums otherwise payable in an interim or final payment certificate pursuant to Clause 20.2(1) shall be calculated by multiplying the Effective Value by a Price Fluctuation Factor which shall be the net sum of the products obtained by multiplying each of the calculated proportions given in column 4 of the "Schedule of Proportions" by a fraction the numerator of which is the relevant Current Index Figure minus the relevant Base Index Figure and the denominator of which is the relevant Base Index Figure.

Provided that if any appropriate Current Index Figure has not been published at the time of issue of any Surveyor's certificate, the increase or decrease in the sum payable in respect of that certificate will be provisionally calculated and added to or deducted from the sum payable in the certificate by the Surveyor using the latest published Current Index Figure and shall be corrected in the next Surveyor's certificate following the publishing of the relevant Current Index Figure.

(5) In the event of any change(s) to the base period, composition, compilation method or availability of the Index Figure or any statistical figures used for compiling an Index Figure, as adopted by C&SD in the published Index Figure on or after the Tender Closing Date, and

(a) where a conversion factor and/or the associated conversion method for the change in the Index Figure is available from C&SD, the relevant Current Index Figure upon and after the discontinuation of the Index Figure with the original base period, composition and/or compilation method shall be calculated by using such conversion factor on the corresponding Index Figure;

(b) where the Index Figure remains available but a conversion factor and/or the associated conversion method is not available from C&SD, the relevant Current Index Figure upon and after the discontinuation of the Index Figure with the original base period, composition and/or compilation method shall be calculated by multiplying the new Index Figure by a contract conversion factor which is a fraction, the numerator of which is the sum of the Index Figure with the original base period, composition and/or compilation method over the 12 months immediately before the first reference month whereby the Index Figure is discontinued (hereinafter referred to as the "month of the discontinuation"), and the denominator of which is the sum of the Index Figure with the new base period, composition and/or compilation method over the 12 months immediately before the month of the discontinuation

(i.e. $Contract\ Conversion\ Factor\ C = \frac{OIF_{k-1} + OIF_{k-2} + \cdots + OIF_{k-12}}{NIF_{k-1} + NIF_{k-2} + \cdots + NIF_{k-12}}$

where

k is the month of the discontinuation of the old Index Figure

NIF_{k-x} is the new Index Figure applicable for x month(s) before month k

OIF_{k-x} is the old Index Figure applicable for x month(s) before month k); or

(c) where the Index Figure becomes unavailable, such Index Figure (with its relevant item in the Schedule of Proportions) shall be abandoned. The corresponding weighting in column 3 of the Schedule of Proportions (i.e. the percentage of Effective Value of the

work) shall be redistributed to other Index Figures which remain available on a pro-rata basis. The calculated proportions in the Schedule of Proportions shall be updated accordingly.

(6) The "Schedule of Proportions" shall (irrespective of the actual constituents of the work) be "the Schedule of Proportions to be used in calculating the Price Fluctuation Factor" submitted with the Tender and with the calculations duly completed.

SCC22 GENERAL

Rev. 1 approved on 01.12.2022

SCC22.1 Preservation and protection of Old and Valuable Tree

[Guidance Note:

For use where there is/are Old and Valuable Tree(s) within and/or in close vicinity of the Site to be preserved. Consider the tree protection zone as set out in DEVB Technical Circular latest version. Check with the Project LA for their existence.

(i) This SCC Clause can only cater for a single Old and Valuable Tree within or in close vicinity of the Site. In the event where there is more than one such tree within and/or in close vicinity of the Site, please consult SQS/CA Unit(s) for the adoption of project-specific amendments to this SCC Clause;

(ii) Check with the Project LA for the serial number of the Old and Valuable Tree and insert it in both Clauses SCC22.1(1) and SCC22.1(2);

(iii) Ensure that the sum payable by the Contractor to the Employer in respect of each of the Old and Valuable Trees stated in this Clause is stipulated in the appendix to Form of Tender in the event that any tree has died or become moribund. A project-specific Form of Tender is obtainable from SQS/CA Unit(s) for such purpose;

(iv) Ensure that the requirements of a qualified arborist are incorporated in the Specification; and

(v) Ensure that Clauses SCC1.4 and SCC22.2 are also incorporated in the Conditions of Contract.]

(1) The Contractor shall take all reasonable measures, including but not limited to the stipulations in the Contract, to preserve and protect the Old and Valuable Tree No. _____.

(2) If Tree No. _____ dies or becomes moribund as determined by the qualified arborist stipulated in the Contract and such death or moribundity occurs before the expiry of the Maintenance Period as stated in the appendix to the Form of Tender or where there is more than one such Maintenance Period, before the expiry of the last Maintenance Period, the Contractor shall be liable to pay to the Employer the sum as stated in the appendix to the Form of Tender for the cost that the Employer has expended and/or will be expended for nurturing, preservation, protection and maintenance of that tree. The payment of such sum shall not relieve the Contractor from any of his obligations under the Contract.

Provided that if the death or moribundity of Tree No. _____ is not due to neglect or failure on the part of the Contractor to comply with any of his express or implied obligations under the Contract as determined by the Contract Manager, the Contractor shall not be liable to pay such sum to the Employer.

Rev. 1 approved on 01.12.2022

SCC22.2 Commencement and completion of Aftercare to Old and Valuable Trees

[Guidance Note:

For use where there is/are Old and Valuable Tree(s) within and/or in close vicinity of the Site to be preserved. Consider the tree protection zone as set out in DEVB Technical Circular latest version. Check with the Project LA for their existence.

(i) Check with the Project LA for the "Period for Aftercare to Old and Valuable Trees" and the "Maintenance Period for Aftercare to Old and Valuable Trees" and ensure that they are both stipulated in the appendix to Form of Tender. A project-specific Form of Tender is obtainable from SQS/CA Unit(s) for such purpose;

(ii) Ensure that Clauses SCC1.4 and SCC22.1 are also incorporated in the Conditions of Contract.

(iii) Ensure that the requirements of the Aftercare to Old and Valuable Trees are incorporated in the Specification.]

(1) As soon as in the opinion of the Contract Manager the Works other than Aftercare to Old and Valuable Trees have been substantially completed, the Contract Manager shall, notwithstanding the provisions of Clause 8.1 of the General Conditions of Contract, notify the Contractor in writing of the date for commencement of the Aftercare to Old and Valuable Trees which shall be undertaken for the duration stated in the appendix to the Form of Tender. Such date for commencement shall be the day following the date of certification of completion of the Works other than Aftercare to Old and Valuable Trees, or the last Section where the Works are phased for completion in Sections, by the Contract Manager under Clause 8.7 of the General Conditions of Contract.

(2) Notwithstanding the provisions of Clauses 8.7(5)(a) and 8.7(5)(b) of the General Conditions of Contract, no certificate of completion shall be given in respect of any part of the Aftercare to Old and Valuable Trees, provided that this shall not prevent the issuance of a certificate of completion in respect of the whole of the Aftercare to Old and Valuable Trees.

(3) Pursuant to Clause 8.7 of the General Conditions of Contract, the Maintenance Period for Aftercare to the Old and Valuable Trees is stated in the appendix to the Form of Tender.

SCC22.3 Excavation Permit for Works

(1) (a) Where execution of any part of the Works requires excavation in a Street Maintained by the Highways Department the Contractor shall request the Employer to apply for an Excavation Permit from the Designated Authority. The Employer shall be the Permittee and the Contractor shall be nominated by the Employer as the Nominated Permittee of the Excavation Permit. The Contractor shall not withhold his consent to the nomination or agreement to comply with the conditions in the Excavation Permit or, in the case where such consent and agreement have been given, shall not withdraw his consent to the nomination or agreement to comply with the conditions in the Excavation Permit. Further to taking all necessary steps so as to qualify as the Nominated Permittee under the Land (Miscellaneous Provisions) Ordinance (Cap. 28) by the Contractor, the Contractor shall take all necessary actions to comply with the conditions stipulated in the Excavation Permit including those conditions applicable to the Permittee and shall use his best endeavours to assist the Employer and his agents, employees or workers to comply with the same.

(b) Where execution of any part of the Works requires excavation in land other than a Street Maintained by the Highways Department and requires an Excavation Permit the Contractor shall apply to the Designated Authority for an Excavation Permit or for exemption under Section 10B of the Land (Miscellaneous Provisions) Ordinance

(Cap. 28) as the case may be for such part of the Works and, where an Excavation Permit has been applied for, shall be the Permittee.

(2) Clause 15.1(1) of the General Conditions of Contract is amended by adding "or" after the comma in Clause 15.1(1)(h), and adding the following clauses thereafter:-

(i) has unreasonably withheld or withdrawn his consent to be the Nominated Permittee of any Excavation Permit or his agreement to comply with the conditions in the Excavation Permit for excavation in connection with the Works, or

(j) has failed to obtain the approval to be the Nominated Permittee from or has his approval withdrawn by the Designated Authority in relation to any Excavation Permit for excavation in connection with the Works,

(3) Notwithstanding Clause SCC22.3(2) of the Special Conditions of Contract, if the Contractor shall have unreasonably withheld or withdrawn his consent to be the Nominated Permittee of any Excavation Permit or his agreement to comply with the conditions in the Excavation Permit for excavation in connection with the relevant part of the Works, or if the Contractor shall have failed to obtain the approval to be Nominated Permittee from or have his approval withdrawn by the Designated Authority in relation to any Excavation Permit for excavation in connection with the relevant part of the Works, the Contract Manager may give the Contractor 14 days' notice to rectify such situation. If the Contractor fails to comply with such notice, the Employer may but shall not be obliged to carry out such works by its own workers or to nominate other contractors to be the Nominated Permittee and shall have such works carried out by those other contractors. Without prejudice to any other remedy, all additional expenditure properly incurred by the Employer in having such works carried out shall be recoverable by the Employer from the Contractor.

(4) In relation to any Excavation Permit referred to in Clause SCC22.3(1)(a) of the Special Conditions of Contract or any extension in respect thereof:-

(a) the Employer shall pay all prescribed fees under the Land (Miscellaneous Provisions) Ordinance (Cap. 28) unless provided otherwise in this Clause SCC22.3 of the Special Conditions of Contract, and

(b) the Contract Manager shall notify the Contractor when the Excavation Permit has been obtained. If during the currency of the Works a revision to the Excavation Permit has become necessary, the Contractor shall notify the Contract Manager immediately, and

(c) the Contractor shall, when required by the Contract Manager in writing and before the commencement of any part of the Works covered by the Excavation Permit, send to the Designated Authority pursuant to Section 10I of the Land (Miscellaneous Provisions) Ordinance (Cap. 28) a notice in writing using the prescribed form as provided in the appendix to the Conditions of Contract giving his consent to be the Nominated Permittee of the Excavation Permit and agreement to comply with the conditions in the Excavation Permit, and

(d) the Contractor shall advise the Contract Manager promptly of the need for an extension to the Excavation Permit and request the Employer to apply for such extension for the satisfactory completion of the Works, and

(e) the Contractor shall render all necessary assistance to the Employer in the process of any application for the Excavation Permit or any extension in respect thereof including supply of all necessary information to the Contract Manager, and

(f) the Employer shall not be liable in any way for failing to submit an application for the Excavation Permit and any extension in respect thereof unless the Contractor shall

have complied with his obligations under Clauses SCC22.3(4)(b), SCC22.3(4)(c), SCC22.3(4)(d) and SCC22.3(4)(e) of the Special Conditions of Contract and shall have allowed the Employer sufficient time to prepare the application, and

(g) the Employer shall be entitled to recover from the Contractor any fees including Economic Costs paid by the Employer for an extension in respect of a permit referred to in Sections 10A(3) and 10D(4) of the Land (Miscellaneous Provisions) Ordinance (Cap. 28) and may but shall not be bound to deduct the amount either in whole or in part in accordance with the provisions of Clause 15.3 of the General Conditions of Contract.

Provided that the Employer shall return any refund from the Designated Authority of fees including Economic Costs so recovered or deducted. The Contractor shall provide all necessary assistance or information to the Employer to assist him in applying to the Designated Authority for any review under the Land (Miscellaneous Provisions) Ordinance (Cap. 28) for the purpose of refund of fees including Economic Costs.

Provided further that on application of the Contractor, the Contract Manager is of the opinion that the need for such extension is partly or wholly caused by:-

(i) the progress of the Works being materially affected by a Variation, or

(ii) an instruction issued under Clause 4.1 of the General Conditions of Contract, or

(iii) a disturbance for which the Employer, the Contract Manager or a person or company, not being a Utility Undertaking, engaged by the Employer in supplying materials or in executing work directly connected with but not forming part of the Works is responsible,

the Contract Manager shall determine a fair share of the fees including Economic Costs on the part of the Employer who shall return such share to the Contractor.

For the avoidance of doubt, the opening up for inspection in accordance with Clause 7.4 of the General Conditions of Contract of any work covered up or put out of view after compliance with the requirements of Clause 7.3 of the General Conditions of Contract, or the testing of materials or workmanship not required by the Contract but directed by the Contract Manager or the Contract Manager's Representative in accordance with Clause 7.1(1) of the General Conditions of Contract shall not be regarded as a disturbance within the meaning of Clause SCC22.3(4)(g)(iii) of the Special Conditions of Contract unless the inspection or test not required by the Contract showed that the work, materials or workmanship were in accordance with the Contract.

(5) In relation to any application for an Excavation Permit under Clause SCC22.3(1)(b) of the Special Conditions of Contract or any extension in respect thereof, the Contractor shall pay all prescribed fees under the Land (Miscellaneous Provisions) Ordinance (Cap. 28).

(6) In relation to any Excavation Permit or any extension thereof obtained under Clause SCC22.3(1)(a) or SCC22.3(1)(b) of the Special Conditions of Contract and without prejudice to Clause 5.23 of the General Conditions of Contract, the Contractor shall conform in all respects with the conditions stipulated in any Excavation Permit to the extent that such conditions are to be observed by the Contractor and applicable to the Works and shall indemnify and keep indemnified the Employer, his agents, employees and workers against all penalties or liabilities of every kind for breach of any conditions stipulated in any Excavation Permit applicable to the Works, whether such conditions are to be observed by the Permittee, the Nominated Permittee or both the Permittee and the Nominated Permittee if and to the extent that such breach is attributable to the act, default or neglect of the

Contractor, his agents, employees or workers, his sub-contractors of all tiers, or the agents, employees or workers of his sub-contractors of all tiers.

(7) The Contractor shall continue to be responsible for liaising with Utility Undertakings and other relevant parties identified in the Contract in connection with the execution of the Works, including without limitation coordinating and agreeing a programme with the relevant Utility Undertakings or other parties where such is applicable.

(8) It is incumbent upon the Contractor to plan and programme his Works to cater for any restrictions imposed by the Designated Authority.

(9) The Contractor shall allow for in his plan and programme his obligations to comply with this Clause SCC22.3 of the Special Conditions of Contract (including without limitation to Clauses SCC22.3(1)(a), SCC22.3(1)(b), SCC22.3(4)(b), SCC22.3(4)(c), SCC22.3(4)(d) and SCC22.3(4)(e) of the Special Conditions of Contract) and the time that may be taken by the Designated Authority to process the application for any Excavation Permit and any extension in respect thereof.

(10) Notwithstanding Clause SCC22.3(1) of the Special Conditions of Contract, the Employer may apply for an Excavation Permit for the execution of the Works in the absence of a request to do so from the Contractor. For the avoidance of doubt, the obligations of the Contractor under this Clause SCC22.3 of the Special Conditions of Contract remain unchanged (with the exception of making a request to the Employer in respect of an application for the Excavation Permit) if the Employer chooses to apply for Excavation Permit out of his own volition.

(11) Notwithstanding Clause 8.2 of the General Conditions of Contract, possession of and the actual area for the Portion of the Site for carrying out any part of the Works requiring excavation in a Street Maintained by the Highways Department or in land other than a Street Maintained by the Highways Department but requiring an Excavation Permit are to be given by the Designated Authority and shall be subject to the Employer or the Contractor having obtained the Excavation Permit as required under Clause SCC22.3(1)(a) or SCC22.3(1)(b) of the Special Conditions of Contract as appropriate. For the avoidance of doubt, the Contractor shall only be given non-exclusive possession of the relevant Portion of the Site for carrying out such works.

(12) For the purpose of this Clause SCC22.3 of the Special Conditions of Contract, there shall be no failure on the Employer's part to give possession of the relevant Portion of the Site if the carrying out of such works is hindered by the delay or failure of the Contractor in complying with any of his obligations under this Clause SCC22.3 of the Special Conditions of Contract including but not limited to his obligations under Clauses SCC22.3(1)(a), SCC22.3(1)(b), SCC22.3(4)(b), SCC22.3(4)(c), SCC22.3(4)(d) and SCC22.3(4)(e) of the Special Conditions of Contract and in no circumstances shall this give rise to any entitlement of the Contractor to additional Cost pursuant to Clause 11.5(1)(a)(vi) of the General Conditions of Contract or extension of time pursuant to Clause 8.4 of the General Conditions of Contract.

SCC22.4 Housing Construction Management Enterprise System

(1) HOMES shall be adopted as the electronic communication media for the Contract from the Start Date to the End Date. Subject to the contrary as provided for in this Clause SCC22.4 of the Special Conditions of Contract, any communication for the Contract shall be made in HOMES.

(2) The Contract Manager shall have the full power to determine and adjust the extent of the application of HOMES in contract communications before the End Date and to order the adoption of communications in hardcopy form. The Contractor shall comply with the order of the Contract Manager and shall not be entitled to any compensation in time and cost

whatsoever as a consequence of such order of the Contract Manager. For the avoidance of doubt, the hardcopy communications made as a result of the determination and adjustment to the extent of the application of HOMES by the Contract Manager are not required to be input into HOMES by the Contractor unless otherwise instructed by the Contract Manager under Clause 11.2 of the General Conditions of Contract. Provided that in the event of any discrepancy between the hardcopy communication made as a result of the determination and adjustment to the extent of the application of HOMES by the Contract Manager and the subsequent input copy of such communication into HOMES as instructed by the Contract Manager after resumption of the application of HOMES, the hardcopy communication made as a result of the determination and adjustment to the extent of the application of HOMES by the Contract Manager shall prevail over the subsequent input copy of such communication into HOMES.

(3) Subject to the provisions of Clauses SCC22.4(2), SCC22.4(6), SCC22.4(7) and SCC22.4(8) of the Special Conditions of Contract in respect of hardcopy communication, the Contractor shall not submit hardcopy communication to the Employer, the Contract Manager, the Surveyor or any of their representatives and these hardcopy communication where submitted may not be considered by them. The Electronic Communication in HOMES thus made in accordance with this Clause SCC22.4(3) of the Special Conditions of Contract shall be deemed to be the formal and authentic copy of the communication. Nevertheless, an Electronic Communication in HOMES shall not be taken to prejudice the generality of the Contractor's responsibilities under the Contract to comply with the requirements in the Contract upon which the electronic communication is made.

(4) Users of HOMES shall include the Employer, the Contractor, the Nominated Sub-contractor, the Contract Manager, the Surveyor, or any of their representatives or any other user authorized to use HOMES for the Contract. The Contractor shall observe the service hours for HOMES and the Guide for Housing Construction Management Enterprise System (HOMES) for Hong Kong Housing Authority (for Contractors' use only) (hereinafter referred to as the "Guide for HOMES") in using HOMES. The Contractor shall ensure that the Guide for HOMES are made known to his representatives who are authorised to use HOMES for the Contract and provide such training as appropriate to ensure their proper use of HOMES.

(5) For the purpose of the Contract, the date of delivery of an Electronic Communication in HOMES shall be the date of receipt of the electronic communication in HOMES' server. Provided that where the date of receipt of the electronic communication in HOMES' server falls on a General Holiday or Saturday or where the time of receipt of the electronic communication in HOMES' server is after 5:45 p.m. of any day from Monday to Friday which is not a General Holiday, the date of delivery of the Electronic Communication in HOMES shall be taken as the next day which is not a General Holiday or Saturday following the date of receipt in HOMES' server.

(6) (a) Notwithstanding Clause SCC22.4(1) of the Special Conditions of Contract, in respect of the submission of the Contractor's interim statement to the Surveyor in accordance with Clause 14.1 of the General Conditions of Contract, the Contractor's interim statement shall be delivered by post or personally to the Surveyor in a hardcopy form in accordance with Clause 14.1 of the General Conditions of Contract. In respect of the certificate issued by the Surveyor in accordance with Clause 14.2 of the General Conditions of Contract, the Surveyor's certificate shall be issued in a hardcopy form.

(b) Notwithstanding Clause SCC22.4(1) of the Special Conditions of Contract, notices or orders of the following shall not be valid unless they are made in hardcopy form and in accordance with the relevant provisions of the Contract:-

(i) termination of the Contract by the Employer under Clause 16.1 of the General Conditions of Contract, or

(ii) termination of the Contract by the Contractor under Clause 19.1 of the General Conditions of Contract, or

(iii) termination of the Contractor's employment under Clause 15.1 of the General Conditions of Contract, or

(iv) suspension of the Works by the Contract Manager under Clause 9.2 or 9.3 of the General Conditions of Contract, or

(v) any supplemental agreement between the Employer and the Contractor amending the Contract.

(c) The hardcopy of the documents stipulated in Clauses SCC22.4(6)(a) and SCC22.4(6)(b) of the Special Conditions of Contract shall be the formal and authentic copy of each.

(7) (a) In the event of any system failure or system maintenance to HOMES during normal service hours as confirmed in writing in a hardcopy form by the Contract Manager, the hardcopy mode of communication shall be adopted until the service of HOMES is resumed. The Contractor shall not be entitled to any compensation in time and cost whatsoever as a consequence of such suspension.

(b) For the purpose of consistency and continuity of the record kept in HOMES in respect of system failure or system maintenance of HOMES, all hardcopy communication exchanged as required in Clause SCC22.4(7)(a) of the Special Conditions of Contract shall be input into HOMES by the sender of the hardcopy communication within a reasonable time as determined by the Contract Manager after the resumption of the service of HOMES. The Contractor shall not be entitled to any compensation in time and cost whatsoever as a consequence of such input. Provided that in the event of any discrepancy between the hardcopy communication exchanged as required in Clause SCC22.4(7)(a) of the Special Conditions of Contract and the subsequent input copy of such communication into HOMES after resumption of the service of HOMES, the hardcopy communication exchanged as required in Clause SCC22.4(7)(a) of the Special Conditions of Contract shall prevail over the subsequent input copy of such communication into HOMES.

(8) Notwithstanding the provisions of this Clause SCC22.4 of the Special Conditions of Contract, the Contract Manager and the Surveyor shall be entitled to demand the Contractor to provide the original copy of any documents such as quotations, receipts, test certificates, forms, submissions required under the Contract, insurance policy, warranties, bonds and the like for the purpose of verification or record of information contained in an Electronic Communication in HOMES. The Contractor shall forthwith send the required documents to the Contract Manager and the Surveyor upon demand.

(9) Upon expiry of the End Date, the Contractor's right to access HOMES shall be lapsed. The Contractor shall be responsible for keeping and maintaining his records of Electronic Communication in HOMES for his use. After the End Date, all communication among the Employer, the Contractor, the Contract Manager, the Surveyor, or any of their representatives or any other authorized user shall be exchanged in writing in a hardcopy form. The Contractor shall bear all his costs and expenses whatsoever incurred in keeping and maintaining his records of Electronic Communication in HOMES for his use after the End Date.

SCC22.5 Recovery of expenditure (piling, pilecaps and footings*)

(1) In the event of the Contractor failing to properly design and construct the piles, pilecaps and shallow foundations including footings (raft/pad)* in accordance with the Contract, all additional expenditure incurred by the Employer and all losses suffered by reason of or in

consequence of such failure, including but without limitation the additional expenditure and/or losses due to any changes to the design and construction of the associated:-

(a) substructures, and/or

(b) superstructures,

necessitated by such failure, shall be recoverable by the Employer from the Contractor.

[Guidance Note: *Delete/amend by the PQS as appropriate]

(2) Nothing in this Clause SCC22.5 of the Special Conditions of Contract shall prejudice the right of the Employer to exercise, either in lieu of or in addition to the right and remedy specified in this Clause SCC22.5 of the Special Conditions of Contract, any other rights or remedies to which the Employer may be entitled.

SCC22.6 Provision of exhibition flats and/or show flats

The Contractor shall, at the time and for the period as specified in the Contract, provide the Employer with a specified number of exhibition flats and/or show flats for viewing by members of the public. In this connection the Contractor shall comply with the following requirements:-

(a) The flats shall be complete with finishing and fittings as required by the Contract.

(b) The Contractor shall permit the Employer to carry out specialist furnishing and fitting-out work within the flats.

(c) The Contractor shall permit members of the public to enter the Site for the purpose of viewing the exhibition flats and/or the show flats and shall provide them safe and secure access direct to the flats including signage and additional hoardings to prevent them entering areas of the Site other than the flats and access thereto.

(d) The Contractor shall clean the flats on a daily basis and make good any damage sustained.

(e) Without limiting the Contractor's obligations and responsibilities under the Contract, Clause 5.12 of the General Conditions of Contract shall apply in respect of the exhibition flats and show flats and access thereto.

(f) Without limiting the Contractor's obligations and responsibilities under the Contract, Clause 5.13 of the General Conditions of Contract shall apply in respect of any member of the public and of their property when within the Site for the purpose of viewing the exhibition flats and/or the show flats.

(g) The Contractor shall advise his insurers of the requirements of this Clause SCC22.6 of the Special Conditions of Contract.

SCC22.7 Not used

Withdrawn on 06.05.2019

SCC22.8 Works within the Railway Protection Area

SCC approved on 13.09.2019

(1) This Special Condition of Contract shall apply to any part of the Works within the Railway Protection Area as shown on the Drawings and shall be read in conjunction with the General Conditions of Contract.

(2) For the purpose of this Clause SCC22.8 of the Special Conditions of Contract, the following words and expressions shall have the meaning hereby assigned to them except when the context otherwise requires:-

"Isolation" means isolation of the electrical equipment, which is the disconnection of a section of such equipment from all sources of electricity supply.

"MTRCL" means the MTR Corporation Limited.

"MTRCL's Competent Person" means the person assigned by the MTRCL from time to time to oversee any part of the Works within the Railway Protection Area for the safe operation of the Railway.

"Possession" means possession of a specific section of track or tracks under the sole control of a MTRCL's Competent Person trained and qualified by MTRCL.

"Railway" means all the railway lines in the Hong Kong Special Administrative Region operated by MTRCL.

"Railway Protection Area" means the area enclosed by the railway protection boundary as shown on railway protection plans, which is situated approximately 30 m outside the outer surface of the railway structures/installations, the railway fence/wall, or the nearest rail if there is no railway fence/wall, but it encompasses the whole of any lot as appropriate where any part lies within the 30 m distance. At the railway stations, the area enclosed by the boundary is more extensive. *The railway protection plans can be inspected at MTRCL or viewed from the official website of MTRCL.

[Guidance Note: * If the relevant railway protection plans are not yet available for inspection at MTRCL or viewing from the official website of MTRCL, the project team should delete the last sentence and prepare railway protection plan(s) for incorporation into the tender documents.]

"Restriction" means train speed restriction, which is a limitation of the normal permitted speed of rail traffic over a specified length of the railway track.

(3) (a) The Contractor shall have regard to the Specification for any part of the Works within the Railway Protection Area and shall comply strictly with the requirements as set out therein. The Contractor shall comply with any instructions given by MTRCL through the Contract Manager with regard to planning, method of working, safety requirements and on any other matters which may affect the operation of the Railway. Provided that if a situation occurs which in the opinion of either the Contractor or MTRCL may give rise to or actually constitute an emergency and either the Contractor or MTRCL considers that it is not practicable to communicate through the Contract Manager, then the Contractor and MTRCL may communicate directly with each other and MTRCL may give a direct instruction to the Contractor to carry out any remedial or other works or repairs and such instruction shall be regarded for the purposes of this Contract as an instruction from the Contract Manager.

(b) Should the Contractor be unwilling or unable at once to comply with a direct instruction from MTRCL under the provisions of this Clause SCC22.8(3) of the Special Conditions of Contract, the Contractor shall not prevent and shall permit MTRCL or MTRCL's workers or contractors to carry out the remedial works or other works or repairs required by the direct instruction.

(c) If in the opinion of the Contract Manager, the Contractor was obligated under the Contract to carry out the remedial or other works or repairs referred to in Clause SCC22.8(3)(b) of the Special Conditions of Contract, all costs and charges which are in the opinion of the Contract Manager properly incurred by the MTRCL in carrying out the same shall on demand be paid by the Contractor to the Employer or may be deducted by the Employer from any monies due or which may become due to the Contractor whether under this or any other contract(s) with the Employer.

(d) The Contractor shall notify the Contract Manager as soon as possible of any direct instruction received from MTRCL under the provisions of this Clause SCC22.8(3) of the Special Conditions of Contract.

(4) (a) Where any part of the Works has to be carried out during the period of Restriction, Possession or Isolation and the period of such Restriction, Possession or Isolation is set out in the Contract, the Contractor shall plan and execute that part of the Works so that such period is not exceeded and so that no further periods are required.

(b) If no period of Restriction, Possession or Isolation is set out in the Contract, the Contractor shall before commencing any work through the Contract Manager liaise with MTRCL who will decide if any part of the Works is to be carried out during a period of Restriction, Possession or Isolation. MTRCL may alter or cancel the said period whenever MTRCL considers necessary. The decision of MTRCL in that event shall be binding on the Contractor. Any claims by the Contractor for extension of time or additional payment shall be supported by such contemporaneous records as may reasonably be necessary for consideration by the Contract Manager in consultation with MTRCL.

(c) After the method of carrying out the works has been agreed with MTRCL (and taking into account any provisional arrangements which had been made), the Contractor shall in all cases other than for emergency works submit written notice of his programme of works, which shall include details of any Restriction, Possession or Isolation previously notified as being necessary by MTRCL, to the MTRCL at least ten calendar weeks in advance of the proposed commencement of works within the Railway Protection Area.

(d) When an entry into the area where there is a period of Restriction, Possession or Isolation is necessary, the Contractor shall be responsible for initiating the necessary action to obtain the requisite approval from MTRCL. The Contractor shall be solely responsible for all delays caused through failure to submit the necessary application for approval, submission of inadequate information or late submission of any such application.

(e) The Contractor shall organize the execution of the works during any period of a Restriction and/or Possession and/or Isolation so that MTRCL will be able to remove such Restriction, Possession or Isolation at the time set out in the Contract or the time previously agreed by MTRCL. Should the Contractor in the opinion of the Contract Manager or MTRCL not make sufficient or adequate arrangements (including the provision of standby plant) for completing the whole or any stage of the works within the time set out in the Contract or agreed with MTRCL, MTRCL may at his discretion cancel the Restriction and/or Possession and/or Isolation, or MTRCL may employ other contractor(s) to finish or to carry out such works as is necessary to enable the Restriction and/or Possession and/or Isolation to end at the earliest possible moment.

(f) A period of Restriction and/or Possession and/or Isolation cannot normally be extended and if the Contractor fails to carry out the works during any such period he shall be required to re-apply to MTRCL for a further period of Restriction and/or Possession and/or Isolation.

(g) All expenses which in the opinion of the Contract Manager are properly incurred by the MTRCL as a result of the MTRCL making necessary arrangements in accordance with Clause SCC22.8(4)(e) of the Special Conditions of Contract to assist the Contractor or carrying out any necessary works in accordance with Clause SCC22.8(4)(e) of the Special Conditions of Contract shall on demand be paid by the Contractor to the Employer or may be deducted by the Employer from any monies due or which may become due to the Contractor whether under this or any other contract(s) with the Employer.

(5) (a) MTRCL shall have the right to cancel or alter the date and the timing of any Restriction, Possession or Isolation whether such date and timing are set out in the Contract or have been previously agreed, if in his opinion, it is necessary to do so for the safe and uninterrupted running of rail traffic. In such an event MTRCL shall make alternative arrangements as soon as practicable.

(b) Subject to any default by the Contractor under Clause SCC22.8(4)(e) of the Special Conditions of Contract, if the Contractor suffers delay or incurs expense due to MTRCL cancelling or altering at short notice the date or the timing of any Restriction, Possession or Isolation set out in the Contract or previously agreed by MTRCL, the Surveyor shall on application by the Contractor and following receipt from the Contractor of particulars, as full and detailed as possible, value and certify such sum, if any, as the Surveyor considers fair and reasonable.

[Guidance Notes to SCC22.8(5)(c):

1. **There are two Options, viz, Options A and B to be chosen by project teams:**
   a. **Option A is for use in contracts not adopting SCC8.2; and**
   b. **Option B is for use in contracts adopting SCC8.2 (mainly for contracts with Contractor's design of piling and pile caps and it provides an EOT ground for adverse ground conditions).**
2. **Select either Option A or Option B as appropriate and delete the non-applicable one.]**

Option A

(c) Clause 8.4(2)(b) of the General Conditions of Contract is amended by renumbering Clause 8.4(2)(b)(xiii) of the General Conditions of Contract as Clause 8.4(2)(b)(xv) and adding the following as Clauses 8.4(2)(b)(xiii) and 8.4(2)(b)(xiv) of the General Conditions of Contract respectively:-

"(xiii) subject to any default by the Contractor under Clause SCC22.8(4)(e) of the Special Conditions of Contract, cancellation or alteration by MTRCL at short notice of the date or timing of any Restriction, Possession or Isolation set out in the Contract or previously agreed to by MTRCL as referred to in Clause SCC22.8 of the Special Conditions of Contract, or" and

"(xiv) delay on the part of any Nominated Sub-contractor for any reason specified in Clause 8.4(2)(b)(xiii) and which the Contractor has taken all reasonable steps to avoid or reduce, or".

Option B

(c) Clause 8.4(2)(b) of the General Conditions of Contract is amended by renumbering Clause 8.4(2)(b)(xiii) of the General Conditions of Contract as Clause 8.4(2)(b)(xvi) and adding the following as Clauses 8.4(2)(b)(xiv) and 8.4(2)(b)(xv) of the General Conditions of Contract respectively:-

"(xiv) subject to any default by the Contractor under Clause SCC22.8(4)(e) of the Special Conditions of Contract, cancellation or alteration by MTRCL at short notice of the date or timing of any Restriction, Possession or Isolation set out in the Contract or previously agreed to by MTRCL as referred to in Clause SCC22.8 of the Special Conditions of Contract, or" and

"(xv) delay on the part of any Nominated Sub-contractor for any reason specified in Clause 8.4(2)(b)(xiv) and which the Contractor has taken all reasonable steps to avoid or reduce, or".

SCC22.9 Joint and several liability of partners and unincorporated joint venture participants

SCC approved on 01.12.2022

[Guidance Note: Do not adopt this SCC Clause if the Contractor is neither a partnership nor an unincorporated joint venture.]

(1) Where the Contractor is a partnership or an unincorporated joint venture, the liability of each partner of the partnership or participant of the unincorporated joint venture under the Contract shall be joint and several.

(2) In relation to such Contractor only, the Articles of Agreement referred to in Clause 5.2 of the General Conditions of Contract shall mean the Articles of Agreement as provided in the appendix to the Conditions of Contract, with such modifications as may be necessary.

(3) For the purpose of this Clause SCC22.9 of the Special Conditions of Contract:-

(a) "unincorporated joint venture" means the sole proprietors, firms and/or companies joint together as partners within the meaning of a partnership under the Partnership Ordinance (Cap. 38) or as independent contractors under a purely contractual arrangement.

(b) "participant" means each individual party participating in the unincorporated joint venture.

SCC22.10 Contractor's joint venture

SCC approved on 01.12.2022

[Guidance Note: Do not adopt this SCC Clause if the Contractor is neither an unincorporated joint venture nor an incorporated joint venture.]

(1) Where the Contractor is an incorporated joint venture it shall within 14 days of the date of the Letter of Acceptance provide to the Employer a joint venture guarantee in the form set out in the appendix to the Conditions of Contract executed by all the shareholders of the Contractor.

(2) Notwithstanding any other provisions of the Contract, failure by the Contractor to provide a joint venture guarantee in strict accordance with Clause SCC22.10(1) of the Special Conditions of Contract shall constitute a breach of the Contract entitling the Employer to damages and shall entitle the Employer to terminate the Contract forthwith by notice in writing to that effect and the Contractor shall not be entitled to any compensation whatsoever as a consequence of such termination.

(3) The Contractor shall not make any changes to the following during the continuance of the Contract unless prior written consent from the Employer is obtained in accordance with Clause SCC22.10(4) of the Special Conditions of Contract:-

(a) the percentage participation of each participant or shareholder in a joint venture; and

(b) the portion(s) or part(s) of the Works for which each participant or shareholder in a joint venture is responsible.

(4) In the event that the Contractor considers a change to the details referred to in Clause SCC22.10(3)(a) or (3)(b) of the Special Conditions of Contract is necessary because:-

(a) any participant or shareholder in a joint venture shall become bankrupt or have a receiving order made against him or shall present his petition in bankruptcy or shall make an arrangement with or assignment in favour of his creditors or shall agree to carry out the Contract under a committee of inspection of his creditors or (being a corporation) shall go into liquidation (other than a voluntary liquidation for the purposes or amalgamation or reconstruction); and

(b) for the satisfactory completion of the Works,

the Contractor shall write to the Employer with detailed substantiation requesting the Employer's consent before any changes are made. The Employer may in his absolute discretion accept or reject the request but shall within 14 days from the date of receipt of such request inform the Contractor in writing whether consent is given.

(5) For the purpose of this Clause SCC22.10 of the Special Conditions of Contract:-

(a) "incorporated joint venture" means the sole proprietors, firms and/or companies incorporated as a company pursuant to statue, with each participating party as a shareholder of the company.

(b) "shareholder" means each individual party participating in the incorporated joint venture.

(c) "unincorporated joint venture" means the sole proprietors, firms and/or companies joint together as partners within the meaning of a partnership under the Partnership Ordinance (Cap. 38) or as independent contractors under a purely contractual arrangement.

(d) "participant" means each individual party participating in the unincorporated joint venture.